

14/6/18
Returned

O/C

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

PRESENTATION FORM

L.P. No. 24930 / 2018 (S-PRO)

Serial No. _____

Advocate Sri

Ravishankar R H
Advocate

'Gurukrupa', No. 44, 2nd Floor
Seshadripuram College Road
Swastik Circle, Bangalore 56002
Mob: 94493 93076

District

Between

Smt. Roopa L. Bhat

And

State of Karnataka

Sl. No.	Description of Paper Presented	Court Fee Affixed On the paper
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2.	On the Memo of Appeal	
3.	On Vakalath <u>for</u> petitioner	
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Bangalore

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IN THE HIGH COURT OF KARNATAKA AT BANGALORE

(Original Jurisdiction)

W.P.No.

OF 2018

Between:

Smt. Roopa L Bhat

Petitioners

And:

State of Karnataka

Respondents

INDEX

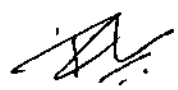
Sl.No	Description	Pages
1	Synopsis	1 - 7
2	Memorandum of Writ Petition under Article 226 & 227 of the Constitution of India	8 - 18
3	Verifying Affidavit	19
4	Copy of Order dated 10.07.1998 passed by the Director, Department of PU Education - Annexure-A	20 - 21
5	Copy of Order dated 04.12.1998 passed by the Director, Department of PU Education - Annexure-B	22 - 25
6	Copy of Order dated 01.07.2002 passed by Respondent No.2 - Annexure-C	26 - 29
7	Copy of Order dated 04.12.1998 passed by the Director, Department of PU Education - Annexure-D	30 - 34
8	Copy of Order dated 07.07.2003 passed by this Hon'ble Court in W.P.No.1134/2003 - Annexure-E	35 - 39
9	Copy of Order dated 08.10.2004 passed by Respondent No.1 - Annexure-F	40 - 53
10	Copy of Order dated 29.06.2007 passed by this Hon'ble Court in W.P.No.45979/2004 - Annexure-G	54 - 59
11	Copy of Order dated 19.09.2008 passed by the Director, Department of PU Education - Annexure-H	60 - 70
12	Copy of Order dated 19.09.2008 passed by Respondent No.1 - Annexure-J	71 - 79
13	Copy of Order dated 30.05.2017 passed by this Hon'ble Court in W.P.No.7999/2013 - Annexure-K	80 - 85

14	Copy of Order dated 08.03.2018 passed by Respondent No.1 - Annexure-L	86-90
15	Vakalat	91

Bangalore

Date: 08-6-18

08-6-18


ADVOCATE FOR PETITIONER

Raishankar R. H

(KAR. 2230/2010)

1

IN THE HIGH COURT OF KARNATAKA AT BANGALORE
(Original Jurisdiction)

W.P.No.

OF 2018

Between:

Smt. Roopa L Bhat

Petitioners

And:

State of Karnataka

Respondents

SYNOPSIS

Sl. No.	Date	Event
1	November 1996	Petitioner appointed as Temporary/ Hon. Lecturer in History at Respondent No.2 due to vacancy caused in the post due to retirement of M.Ramachandra Bhat
2	20.05.1997	Respondent No.1 by his letter approved for filling up of the vacancy in post of Lecturer in History at Respondent No.2 by direct recruitment
3	02.07.1997	Respondent No.2 advertised regarding the vacancy in post of Lecturer in History at Respondent No.2 to be filled by direct recruitment
4	11.08.1997	Petitioner who had sent her application pursuant to the said advertisement was interviewed.
5	11.09.1997	Petitioner was selected and started working permanently as Lecturer in History at Respondent No.2
6	10.07.1998	Director, Department of PU Education approved the said appointment (Annexure-A).
7	04.12.1998	Upon the Review application filed by Respondent No.3 to the said order on the ground that the said post ought to have been filled by promotion and not direct recruitment, Director withdrew in his earlier order at Annexure A and directed Respondent No.2 to fill in the vacancy in the post of Lecturer in History by Direct Recruitment (Annexure-B)
8	01.07.2002	Respondent No.1 in Appeal 24/1999 filed by the Petitioner quashed the order of the Director at

		Annexure-B and directed to indentify the exact number of promotional direct recruitment post in Respondent No.2 and then review the cases within 3 months (Annexure-C)
9	30.10.2002	Once again the Director held that the earlier order dated 04.12.1998 at Annexure-B is proper and in accordance with rules and once again directed Respondent No.2 to fill in the said vacancy/ post of Lecturer in History by promotion. (Annexure-)
10	07.07.2003	Hon'ble High Court of Karnataka in W.P.No.42955/02 and W.P.No.1134/2003 filed by Petitioner and Respondent No.2 against the order dated 30.10.2003 at Annexure granted liberty to approach this Authority and file appeal. (Annexure-)
11	08.10.2004	Respondent No.1 in Appeal No.73/2003 and Appeal No.78/2003 filed by the Petitioner and the Respondent No.3 against the order passed by the Director at Annexure-D, held that the appointment of the Petitioner is made against a vacancy in direct recruitment post and that there is no violation of quota rules. Respondent No.1 also directed the Director to examine the issue whether the appointment of the Petitioner is in accordance with the policy of reservation in favor of Schedule Castes, etc., Further, it was also held that in case the Director finds that the post is general merit post, then the Petitioner shall continue with her services at Respondent No.2. Further, Respondent No.1 also held that Respondent No.3 is found to be eligible for promotion as per the rules and at the same time clarified that the said finding should not be mistaken as direction to promote Respondent No.3. (Annexure- , para 20,21)
12	29.06.2007	Hon'ble High Court of Karnataka in W.P.No.4579/2004 filed by Respondent No.3 held that there was no compliance on the part of the Director with the order dated 08.10.2004 passed by

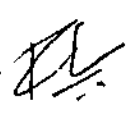
		Respondent No.1 at Annexure- and directed the Respondents to consider the case of the Respondent No.4 for the post of Lecturer in History if he is otherwise eligible. It is submitted that the order dated 08.10.2004 of Respondent No.1 has not been interfered with by this Hon'ble Court. Further, the High Court has also not interfered with the order of this Authority regarding the finding that the appointment of the Petitioner is made against a vacancy in direct recruitment post and that there is no violation of quota rules. (Annexure-)
13	19.09.2008	The Director upon remand by Respondent No.1 in terms of order at Annexure- once again re-opened the settled issue and held that Petitioner's appointment by Direct recruitment dated 11.06.1997 is illegal and directed that her services shall be terminated. (Annexure-)
14	19.09.2008	Respondent No.1 allowed the above Appeal and set aside the order passed by the Director.
15	30.05.2017	The High Court of Karnataka in W.P.No.7999/2013 filed by the legal heir of Respondent No.4 quashed the above said order on the ground that legal representative of Respondent No.4 who had expired during the above said proceedings was not made a party and allowed the Writ Petition and remanded the matter back to Respondent No.1 to decide the matter afresh treating the Petitioner therein as legal representative of Respondent No.4
16.	31.07.2017	Legal representative of Respondent No.4 has been brought on record as Respondent No.4(a) before Respondent No.1 and amended appeal memo was filed
17.	08.03.2018	Respondent No.1 once again re-opened the settled issue regarding appointment to the Post of Lecturer in History in Respondent No.3 college and held that Petitioner's appointment through direct recruitment is illegal and upheld the order dated 19.09.2008 passed

4
by Respondent No.2 and dismissed the Appeal filed by the Petitioner herein.

BRIEF FACTS

1. Petitioner was appointed as a temporary/Hon. Lecturer in History in Manipal Pre-university College, Manipal (an aided PU College) Respondent No.3 herein in the month of November, 1996 due to the vacancy caused by the retirement on superannuation of Shri M.Ramachandra Bhat. Respondent No.3 sought the approval Respondent No.2 for filling up the vacancy of Lecturer in History by direct recruitment which was approved by Respondent No.2 by letter dated 20.05.1997. Accordingly, Respondent No.3 published an advertisement on 02.07.1997 inviting applications; inter alia, against the vacancy of Lecturer in History. Petitioner sent her application and the Petitioner was interviewed on 11.08.1997. Petitioner thereafter was selected to the post of Lecturer in History and accordingly she reported for duty on 11.09.1997 as a regular Lecturer. Director, Department of PU Education (hereinafter referred to as the Director) by order dated 10.07.1998, approved the appointment of the Petitioner to the post of Lecturer in History.

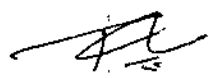
2. Respondent No.4 who was a Secondary School Assistant teaching the subject of Kannada in the High School Section of Manipal Pre-University College and holding M.A. Degree in History filed a Review Application before the Director contending that the vacancy of Lecturer in History in Respondent No.3 college ought to have been filled by promotion and not by direct recruitment and therefore sought for withdrawal of the approval given by Director by order dated 10.07.1998. The Director, by order dated 04.12.1998 passed in R.A.No.PU/AP/5/1998, withdrew his earlier order dated 10.07.1998 and directed Respondent No.3 to fill the vacancy of Lecturer in History by promotion. Being aggrieved by the said order, the Petitioner preferred Appeal



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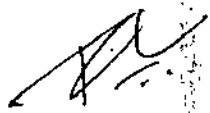
No.24/1999 before Respondent No.1 challenging Director's order dated 04.12.1998. Respondent No.3 by order dated 01.07.2002 passed in Appeal No.24/1999 and RP. No.30/1999, directed the Director to identify the exact number of promotional posts and direct recruitment posts as per rules, and then review cases and pass appropriate orders regarding the request of Respondent No.4 herein, within a time limit of 3 months. The Director once again passed order dated 30.10.2002 stating that his earlier order dated 04.12.1998 was in accordance with rules and directed Respondent No.3 to fill up the said vacancy/post of Lecturer in History from the cadre of Assistant Teachers in the High School section.

3. Petitioner being aggrieved by the said order filed W.P. No.42955/2002 before this Hon'ble Court challenging the said order passed by the Director. Respondent No.3 also filed W.P.No.1134/2003 challenging the same order. This Hon'ble Court by common order dated 07.07.2003, disposed of the said 2 Writ Petitions reserving liberty to the Petitioners therein to file an appropriate appeal under Sec.130 of the Karnataka Education Act, 1983 (hereinafter referred to as the Act.) Thereafter, Petitioner herein preferred Appeal No.73/2003 before Respondent No.1. Respondent No.3 Management also filed Appeal No.78/2003 challenging the said order passed by the Director. The 2 Appeals were heard and disposed of together by Respondent No.1 by common order dated 08.10.2004. In the said order Respondent No.1 specifically held that calculation of quota by the Director is unlawful and set aside the same. In the said order Respondent No.1 categorically held that the Petitioner's recruitment has been made against a direct recruitment vacancy and there is no violation of quota rules in her appointment. Respondent No.1 directed Respondent No.2 to examine if the appointment of the Petitioner is in accordance with the policy of reservation in favor Schedule Castes, etc., or



6
not. Further, by the said order, it was also held that Respondent No.4 was eligible for promotion and also clarified that it has not issued any direction for promotion.

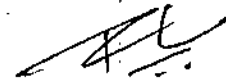
4. Being aggrieved by the said order, Respondent No.4 filed W.P.No.45979/2004 before this Hon'ble Court challenging the order dated 08.10.2004 passed by Respondent No.1. This Hon'ble Court by Order dated 29.06.2007 held that the Director has not complied with the order passed by Respondent No.1 and therefore a direction was given to the Director to consider the case of Respondent No.4 for promotion if he is otherwise found eligible. On this observation, the said Writ Petition was allowed however this Hon'ble Court did not disturb the other findings in the said order regarding appointment of Petitioner by direct recruitment. Upon remand, Respondent No.2 passed order dated 19.09.2008 holding that the appointment of the Petitioner is illegal and directed that her services be terminated with utter disregard and contrary to the directions in the order dated 08.10.2004 passed by Respondent No.1 Appellate Authority and order dated 08.10.2004 passed by this Hon'ble Court in W.P.No.45979/2004. Being aggrieved by the said order, Petitioner filed an Appeal before Respondent No.1 in Appeal No.73/2008. During the pendency of the said appeal, Respondent No.4 expired. However, due to inadvertence the Legal Representatives of Respondent No.4 were not brought on record. Respondent No.1 after hearing passed order dated 19.09.2008 allowing the said appeal and directed Respondents herein to continue the services of Petitioner. Being aggrieved by the said order, the Legal Representative of Respondent No.4 (Respondent No.4(a) herein) approached this Hon'ble Court by filing W.P.No.7999/2013. This Hon'ble Court after hearing the parties quashed the above said order on the ground that legal representative of Respondent No.4 who had expired



7.
during the pendency of proceedings in Appeal 73/2008 was not made a party and allowed the Writ Petition and remanded the matter back to Respondent No.1 to decide the matter afresh treating Respondent No.4(a) as legal representative of Respondent No.4. . Subsequently, the legal representative of Respondent No.4 was brought on record before Respondent No.1. After hearing parties, Respondent No.1 in violation of its own earlier order and also the order passed by this Hon'ble Court dismissed the appeal in Appeal 73/2008 filed by the Petitioner herein and confirmed the order passed by Respondent No.2.

Bangalore

Date: 03-06-2018
08-06-2018


ADVOCATE FOR PETITIONER
RAVISHANKAR R.H
(KAR.2230/2010

8

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

(original Jurisdiction)

W.P.No. 24750 of 2018

Between:

ROOPA L BHAT

Wife of Pradeep G Bhat

Aged about 50 years,

Lecturer in History,

Manipal Pre-University College,

Manipal 576 119

Udupi Taluk & District

Petitioner

And:

1. **State of Karnataka**
Secretary to Government
(Primary & Secondary Education)
M.S. Building, Dr. Ambedkar Veedhi
Bangalore 560 001

2. **Commissioner,**
Pre-University Education,
18th Cross, Malleswaram,
BANGALORE-560 012.

3. **Correspondent**
Manipal Pre-University College,
MANIPAL -576-119,
Udupi Taluk & District

4. **Shri Umamaheshwara Hegde**
S/o. Shri Nagappa Hegde,
Graduate Assistant,
Manipal Pre-University College,
MANIPAL - 576 119,
Udupi Taluk & District.
Since dead represented by his Legal Representative

4(a). **Smt. Gowri**
Wife of late Umamaheshwara Hegde
Aged about 56 years,
Residing at, 'Shuka', Shanthinagar,
Manipal 576 104
Udupi Taluk and District

Respondents

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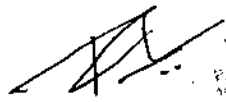
**MEMORANDUM OF WRIT PETITION UNDER ARTICLE 226
& 227 OF THE CONSTITUTION OF INDIA**

Petitioner above named respectfully submits as follows:

1. The address of the parties for service of processes issued by this Hon'ble Court are as stated in the cause title above. Petitioner may also be served as care of her Counsel Ravishankar R.H. , Advocate, No.44, 'Gurukrupa', II Floor, Seshadripuram College Road, Swasthik Circle, Bangalore 560 020.
2. Being aggrieved by the Order dated 08.03.2018 passed in Appeal No.73/2008 (ED SOH 2008) (ED 148 DGW 2015) by Respondent No.1 thereby dismissing the Appeal filed by the Petitioner, the above Writ Petition is filed.

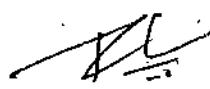
3. The facts of the case and the grounds in support thereof are as follows:

FACTS OF THE CASE

4. Petitioner obtained B.A., Degree with History as one of the major subjects from Mangalore University securing a 2nd Class and she obtained M.A., Degree in History from Karnataka University, Dharwad securing a 2nd Class. She also obtained B.Ed., Degree from Mangalore University with 1st Class. She was appointed as a temporary/Hon. Lecturer in History in Manipal Pre-university College, Manipal (an aided PU College) Respondent No.3 herein, in the month of November, 1996 due to the vacancy caused by the retirement on superannuation of Shri M.Ramachandra Bhat.
 5. Respondent No.3 sought the approval Respondent No.2 for filling up the vacancy of Lecturer in History by direct recruitment which was approved by Respondent No.2 by letter dated 20.05.1997. Accordingly, Respondent No.3 published an advertisement on 02.07.1997 inviting applications; inter
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aila, against the vacancy of Lecturer in History. Petitioner sent her application and the Petitioner was interviewed on 11.08.1997. Petitioner thereafter was selected to the post of Lecturer in History and accordingly she reported for duty on 11.09.1997 as a regular Lecturer. Director, Department of PU Education (hereinafter referred to as the Director) by order dated 10.07.1998, approved the appointment of the Petitioner to the post of Lecturer in History. A copy of the order dated 10.07.1998 is produced herewith as Annexure-A.

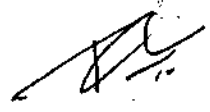
6. Respondent No.4 who was a Secondary School Assistant teaching the subject of Kannada in the High School Section of Manipal Pre-University College and holding M.A. Degree in History with a mere pass class, filed a Review Application before the Director contending that the vacancy of Lecturer in History in Respondent No.3 college ought to have been filled by promotion and not by direct recruitment and therefore sought for withdrawal of the approval given by Director by order dated 10.07.1998 (Annexure-A). The Director, by order dated 04.12.1998 passed in R.A.No.PU/AP/5/1998, withdrew his earlier order dated 10.07.1998 (Annexure-A) and directed Respondent No.3 to fill the vacancy of Lecturer in History by promotion. The said order dated 04.12.1998 is produced herewith as Annexure-B. Being aggrieved by the said order, the Petitioner preferred Appeal No.24/1999 before Respondent No.1 challenging Director's order dated 04.12.1998 (Annexure-B). Respondent No.3 by order dated 01.07.2002 passed in Appeal No.24/1999 and RP. No.30/1999, directed the Director to identify the exact number of promotional posts and direct recruitment posts as per rules, and then review cases and pass appropriate orders regarding the request of Respondent No.4 herein, within a time limit of 3 months. The said order is produced herewith as Annexure-C. The Director once again passed order



dated 30.10.2002 stating that his earlier order dated 04.12.1998 (Annexure-B) was in accordance with rules and directed Respondent No.3 to fill up the said vacancy/post of Lecturer in History from the cadre of Assistant Teachers in the High School section. The said order is produced herewith as Annexure-D.

7. Petitioner being aggrieved by the said order filed W.P. No.42955/2002 before this Hon'ble Court challenging the said order passed by the Director. Respondent No.3 also filed W.P.No.1134/2003 challenging the same order. This Hon'ble Court by common order dated 07.07.2003, disposed of the said 2 Writ Petitions reserving liberty to the Petitioners therein to file an appropriate appeal under Sec.130 of the Karnataka Education Act, 1983 (hereinafter referred to as the Act.) The said common order dated 07.07.2003 passed by the High Court is produced herewith as Annexure-E.

8. Challenging order dated 30.10.2002 (Annexure-D) passed by the Director, Petitioner herein preferred Appeal No.73/2003 before Respondent No.1. It is submitted that Respondent No.3 Management also filed Appeal No.78/2003 challenging the said order passed by the Director. The 2 Appeals were heard and disposed of together by Respondent No.1 by common order dated 08.10.2004. In the said order Respondent No.1 specifically held that calculation of quota by the Director is unlawful and set aside the same. In the said order Respondent No.1 categorically held that the Petitioner's recruitment has been made against a direct recruitment vacancy and there is no violation of quota rules in her appointment. Respondent No.1 directed Respondent No.2 to examine if the appointment of the Petitioner is in accordance with the policy of reservation in favor Schedule Castes, etc., or not. Further, by the said order, it was also held that Respondent No.4 was eligible

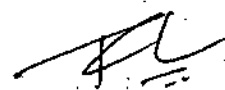


12

for promotion and also clarified that it has not issued any direction for promotion. A copy of the said order is produced herewith as Annexure-F.

9. Being aggrieved by the said order, Respondent No.4 filed W.P.No.45979/2004 before this Hon'ble Court challenging the order dated 08.10.2004 (Annexure-F) passed by Respondent No.1. This Hon'ble Court by Order dated 29.06.2007 held that the Director has not complied with the order passed by Respondent No.1 and therefore a direction was given to the Director to consider the case of Respondent No.4 for promotion if he is otherwise found eligible. On this observation, the said Writ Petition was allowed. A copy of the said order passed by this Hon'ble Court is produced herewith as Annexure-G. It is relevant to note that this Hon'ble Court has not disturbed the Petitioner's appointment by direct recruitment to the post of Lecturer in History, nor has it found fault with or otherwise disturbed the finding of the Respondent No.1. The Respondent No.3 Management filed R.P.No.302/2007.202/2007 in W.P.No.45979/2004. This Hon'ble Court by order dated 09.04.2008 was pleased to dismiss the said review petition.

10. Upon remand, Respondent No.2 passed order dated 19.09.2008 holding that the appointment of the Petitioner is illegal and directed that her services be terminated with utter disregard and contrary to the directions in the order dated 08.10.2004 passed by Respondent No.1 Appellate Authority and order dated 08.10.2004 passed by this Hon'ble Court in W.P.No.45979/2004. A copy of the said order is produced herewith as Annexure-H. Being aggrieved by the said order, Petitioner filed an Appeal before Respondent No.1 in Appeal No.73/2008. During the pendency of the said appeal, Respondent No.4 expired. However, due to inadvertence the Legal Representatives of Respondent No.4 were not brought on record. Respondent No.1 after hearing passed order dated 19.09.2008 allowing the



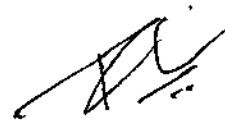
said appeal and directed Respondents herein to continue the services of Petitioner. A copy of the said order is produced herewith as Annexure-J. Being aggrieved by the said order, the Legal Representative of Respondent No.4 (Respondent No.4(a) herein) approached this Hon'ble Court by filing W.P.No.7999/2013. This Hon'ble Court after hearing the parties by order dated 30.05.2017 quashed the above said order on the ground that legal representative of Respondent No.4 who had expired during the pendency of proceedings in Appeal 73/2008 was not made a party and allowed the Writ Petition and remanded the matter back to Respondent No.1 to decide the matter afresh treating Respondent No.4(a) as legal representative of Respondent No.4. A copy of the said order is produced herewith as Annexure-K. Subsequently, the legal representative of Respondent No.4 was brought on record before Respondent No.1. After hearing parties, Respondent No.1 by order dated 08.03.2018 in violation of its own earlier order and also the order passed by this Hon'ble Court dismissed the appeal in Appeal 73/2008 filed by the Petitioner herein and confirmed the order passed by Respondent No.2. Certified copy of the impugned order is produced herewith as Annexure-L.

11. In the circumstances, left with no other alternative or efficacious remedy, the Petitioner has filed the above Writ Petition.

12. Petitioner has not filed any other Writ Petition on the same cause of action. No other proceedings are pending before this Hon'ble Court or any other forum on the same cause of action. Hence, the Petitioner prefers this Writ Petition on the following amongst other grounds:

G R O U N D S

13. A bare perusal to the impugned order passed by Respondent No.1 clearly shows that Respondent No.1 has not even considered the material on

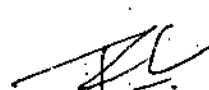


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record. That apart, Respondent No.1 has passed the impugned order on a wrong appreciation of facts and law. Therefore, the impugned order is bad in law.

14. Admittedly, Respondent No.1 (Appellate Authority) by Order dated 08.10.2004 (Annexure-) has categorically held that there is no violation of the quota rules in Petitioner's appointment by direct recruitment and that the calculation of quota between direct recruitment and promotion in the category of Lecturer in History in PU College, Manipal was made by the Director in his Order dated 30.10.2002 (Annexure-), is misconceived and unlawful. Respondent No.2 was bound by this finding/decision of the Appellate Authority. Further, Respondent No.2 had no authority to re-examine the said issue and take a contrary view to the effect that the vacancy has to be filled by promotion, and not by direct recruitment. Further, Respondent No.2 also had no authority to hold that the Petitioner's direct recruitment to the post of Lecturer in History is against the rules and terminate her services. Respondent No.2 therefore had no authority in law to re-open and re-assess a settled issue. The said aspect has not been taken into consideration by Respondent No.1 before passing the impugned order. On this ground alone the impugned order is bad in law and the same is liable to be quashed.

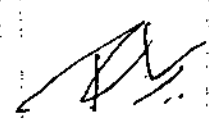
15. Admittedly, Respondent No.1 in order dated 08.10.2004 directed that the Petitioner shall continue in the post of Lecturer in History and the Director to find out if the said post is a General Merit post or not. Therefore, the services of the Petitioner cannot be terminated unless there is a considered finding by the Director that the post is not a General Merit post. Admittedly Respondent No.2 has not given any finding on the said issue. Further, in the said order, Respondent No.1 also held that Respondent No.4 is



15
eligible for promotion to the cadre of Lecturer in History as per the recruitment rules and expressly added a note of caution to the effect that the said finding should not be mistaken as any direction by Respondent No.2 to promote Respondent No.4. This Hon'ble Court in its order dated 29.06.2007 has only made an observation to the effect that Respondents 2 and 3 cannot have any difficulty in considering the case of Respondent No.4 for promotion to the post of Lecturer in History if he is found otherwise eligible, in case one post of Lecturer in History has fallen vacant and as per the roster that post has to be filled by promotion as mentioned in the Statement of Objection filed by the Government and in accordance with the directions of Respondent No.1 in order dated 08.10.2004 passed in Appeal 73/2003. Therefore, Respondent No.1 ought to have held that the order dated 19.09.2008 passed by Respondent No.1 which does not determine whether the post held by Petitioner is a general merit post or not in utter violation of the above said directions from Respondent No.1 and this Hon'ble Court is bad in law. Therefore, the impugned order is liable to be quashed.

16. A perusal to the impugned order clearly shows that Respondent No.1 has mechanically and without affording any reasons has merely reiterated the order passed by Respondent No.2 before dismissing the appeal filed by the Petitioner. Further, Respondent No.1 has not given any reasons for passing the impugned order. Therefore, the impugned order is bad in law and the same is liable to be quashed by this Hon'ble Court.

17. Undisputedly, the issue regarding appointment of Petitioner as Lecturer in History by direct recruitment was already settled by Respondent No.1 in its order dated 08.10.2004 as the same was in accordance with rules, which was not disturbed by this Hon'ble Court. Further, this Hon'ble Court by order dated 29.06.2007 in W.P.No.45979/2004 directed Respondent No.2 to



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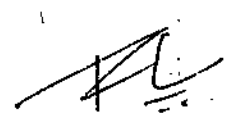
consider the case of promotion of Respondent No.4 in accordance with order dated 08.10.2004 passed by Respondent No.1. Hence, Respondent No.2 was only required to follow the order passed by Respondent No.1 and this Hon'ble Court and give its finding accordingly. Admittedly Respondent No.2 and Respondent No.1 in the impugned order have re-opened the settled issue regarding appointment of Petitioner by direct recruitment and have held that the post of Lecturer in History in Respondent No.3 was required to be filled by promotion. Therefore, the impugned order is bad in law and the same is liable to be quashed.

18. Therefore on the grounds as stated above and on the further grounds that may be urged before this Hon'ble Court subsequently in course of arguments, the order impugned is liable to be quashed.

19. A Certified Copy of the order dated 08.03.2018 is produced herewith

GROUND FOR INTERIM RELIEF

20. The order impugned is grossly illegal and has been passed without even perusing the material on record. Respondent No.1 in its order dated 08.10.2004 has held that the Petitioner's recruitment has been made against a direct recruitment vacancy and there is no violation of quota rules in her appointment and the said finding was not disturbed by this Hon'ble Court. Respondent No.1 and 2 with utter disregard to the above said earlier order have once again re-opened the said issue and has passed a direction to terminate the services of Petitioner. The impugned order is therefore bad in law and the same is liable to be quashed by this Hon'ble Court. Petitioner is been in continuous service for more than 20 years in Respondent No.3 college as Lecturer in History and grave hardship will be caused to her and Petitioner



12
will also lose her employment in case the order terminating her services is not stayed. Hence, the need for interim relief.

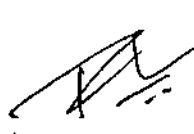
PRAYER

WHEREFORE, the Petitioner humbly prays that this Hon'ble Court be pleased to issue a writ of certorari or any other appropriate writ, order direction:

- (a) call for records in Appeal No.73/2008 on the file of the Secretary to Government of Karnataka (Primary & Secondary Education), Department of Education, Bangalore (Respondent No.1 herein)
- (b) Quash the impugned order dated 08.03.2018 passed in Appeal 73/2008 by Secretary to Government of Karnataka (Primary & Secondary Education), Department of Education, Bangalore (Annexure-L) and consequently quash order dated 19.09.2008 passed in PAPUSHIE/SO26/CASE-16/98-99 by Commissioner, Pre-University Education, Bangalore (Annexure-H)
- (c) Granting costs of these proceedings : and
- (d) Pass such further orders as this Hon'ble Court deems fit on the facts and in circumstances of the case, in the interest of the justice and equity.

INTERIM PRAYER

Pending disposal of the above Writ Petition, it is prayed that this Hon'ble Court may be pleased to stay the operation of order dated 08.03.2018 passed by passed in Appeal No.73/2008 by Secretary to Government of Karnataka (Primary & Secondary Education), Department of Education, Bangalore and order dated 19.09.2008 passed in PAPUSHIE/SO26/CASE-16/98-99 by Commissioner, Pre-University Education, Bangalore and
(Annexure-L)
(Annexure-H)



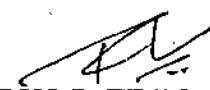
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consequently stay the termination of Petitioner's appointment as Lectuer
History in Respondent No.3 college, in the interest of justice and equity.

Bangalore

Date: 03-06-2018

03-06-2018


ADVOCATE FOR PETITIONER

RAVISHANKAR R.H

(KAR. 2230/2010)

Address for Service:

Ravishankar R.H
Advocate

Brundhara No. 44 2nd Floor
Seshadripuram college Road
Wastik Circle Bangalore-56002

19

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

W.P. No. _____ of 2018

Between:

Sri. Roopa L Bhat

Petitioner

And:

State of Karnataka
Others

Respondents

VERIFYING AFFIDAVIT

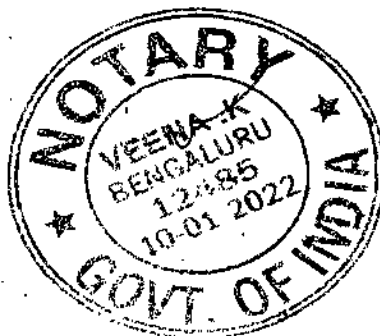
I, Roopa L Bhat Wife of Pradeep Bhat, aged about 50 years, Lecturer in History, Manipal Pre-University College, Manipal 576 119, Udupi Taluk & District, now come to Bangalore do hereby solemnly affirm and state as follows:

1. I am the Petitioner in the above case. I am aware of the facts of the case and am able to depose to the matters pertaining thereto.
2. The statements made in paragraphs 1 to 10 of the accompanying Writ Petition are true and correct to the best of my knowledge, information and belief.
3. Annexure A to K are the true copies of the original. Annexure L is the certified copy of the impugned order.

Bangalore
DATE: 3/6/18

Identified by:

ADVOCATE



[Signature]
DEPONENT

Sworn / Solemnly affirmed and signed before me on this 3 day of 6, 2018 at Bengaluru of Corrections N.R. No. 2188/2018

VEENA. K, Advocate & Notary, Bengaluru

No. of corrections:

3 + 1 my



ANNEXURE A

ಕರ್ನಾಟಕ ಸರ್ಕಾರ

10-7-1998

ಶ್ರೀಮತು: ಪ್ರೊ. ಶಿವ: 11: ಸಿ-2: ಸಿಆರ್: ನೇಮಕ: 97-98

ನಿರ್ದೇಶನ ಕಛೇರಿ,
ಪದವಿ ಪೂರ್ವ ವಿಭಾಗ ಇಲಾಖೆ,
ಚಾಮನ ರಸ್ತೆ, ಬೆಂಗಳೂರು-560 001.

ದಿನಾಂಕ: 10-07-1998

ಪದವಿ ಪೂರ್ವ ವಿಭಾಗ ಇಲಾಖೆಯು ನಿರ್ದೇಶಕರ ನಡೆವಳಿಕೆಗಳು

- ವಿಷಯ: ಶ್ರೀಮತಿ: ರೂಪಾ ಎಲ್ ಭೈ ಇತಿಹಾಸ ಉಪನ್ಯಾಸಕರು, ಪೂರ್ವಪಾಲ ಪರ್ಮಾ ಕಾಲೇಜು, ಮುಳಬಾಗಿಲಿ, ಕೆ.ಕೆ. ಹಳ್ಳಿ ಇವರ ನೇಮಕಾತಿ ಉದ್ದೇಶ: 1. ಉಪನಿರ್ದೇಶಕರು, ಪರ್ಮಾ ವಿಶ್ವವಿದ್ಯಾಲಯ, ಕೆ.ಕೆ. ಹಳ್ಳಿ-ಎವರ ಪತ್ರ, ದಿ: 7-10-97 ಹಾಗೂ 29-11-97.
2. ಉಪನಿರ್ದೇಶಕರು, ಪರ್ಮಾ ವಿಶ್ವವಿದ್ಯಾಲಯ, ಕೆ.ಕೆ. ಹಳ್ಳಿ-ಎವರ ಪತ್ರ, ದಿನಾಂಕ: 29-11-97.
3. ನಡವಳಿಕೆಯ ಮುಳಬಾಗಿಲಿ ಪರ್ಮಾ: ಮುಳಬಾಗಿಲಿ, ಉಡುಪಿ ಹಳ್ಳಿ. ಇವರ ಪತ್ರ, ದಿನಾಂಕ: 11-5-98.

ಪ್ರಸ್ತಾವನೆ:

ನಂಟಾಲಕರು, ಮುಳಬಾಗಿಲಿ, ಪರ್ಮಾ ಕಾಲೇಜು, ಮುಳಬಾಗಿಲಿ ಹಳ್ಳಿ, ಇವರ ಪ್ರಸ್ತಾವನೆಯನ್ನು ಪರಿಶೀಲಿಸಲಾಯಿತು. ಇತಿಹಾಸ ವಿಷಯದಲ್ಲಿ ಈ ಮೂಲದಲ್ಲಿ 1972 ರಲ್ಲಿ ಶ್ರೀ ಎಂ.ಎಲ್.ಕುಮಾರಯ್ಯ, 1999ರಲ್ಲಿ ಶ್ರೀ ಕೆ.ಸಿ.ಡಿ.ಸಿ. 1982ರಲ್ಲಿ ಶ್ರೀ ಎಂ.ರಾಜುರವರವರು, ಈ ಸಹ ವಿಷಯಗಳಿಗೆ ಪದವೀಶಿಕ್ಷಕರಾಗಿ ನೇಮಕಗೊಂಡರು. ಇದಲ್ಲದೇ, ಪರ್ಮಾ ವಿಶ್ವವಿದ್ಯಾಲಯದ ಪದವೀಶಿಕ್ಷಕರಾಗಿ ನೇಮಕಗೊಂಡು ವಿವರಿಸಿ-ಈ ಕಛೇರಿಯಿಂದ ದಿ: 28-3-98 ರಂದು ಕೆಳಕಂಡಂತಿರುವ ನಿರ್ಧಾರವನ್ನು ಮುಂದುವರಿಸಿ ಶ್ರೀಮತಿ: ರೂಪಾ ಭೈ ಇವರ ನೇಮಕಾತಿಯನ್ನು ಅನುಮೋದಿಸಲು ನಿರ್ದೇಶಿಸಿರುತ್ತಾರೆ.

ಇವರ ಮನವಿಯು ಅಂಶಗಳನ್ನು ಪ್ರಸ್ತಾವನೆಯನ್ನು ಮುಂದುವರಿಸಲಾಗಿ ನಡವಳಿಕೆಯ ವಿಷಯದಲ್ಲಿ 8 ಉಪನ್ಯಾಸಕರು ಕಾರ್ಯನಿರ್ವಹಿಸುತ್ತಿರುತ್ತಾರೆ. ಇಲ್ಲಿಯೂ ನೇರ ನೇಮಕಾತಿಯಿಂದ ತುಂಬುವವರಾಗಿರುತ್ತಾರೆ. ಆದರೆ-ಈ ಪ್ರಕರಣದಲ್ಲಿ ಈ ಮೂಲದಲ್ಲಿ ಇತಿಹಾಸ ವಿಷಯದಲ್ಲಿ (1) 1972ರಲ್ಲಿ ಶ್ರೀ ಎಂ.ಎಲ್.ಕುಮಾರಯ್ಯ (ಸಿ-ಸಿ) (2) 1979ರಲ್ಲಿ ಶ್ರೀ ಕೆ.ಸಿ.ಡಿ.ಸಿ. (ಸಿ-ಸಿ) ಮತ್ತೂ (3) 1982 ರಲ್ಲಿ ಶ್ರೀ ರಾಜುರವರವರು (ಸಹ ಸಿ) ಇವರಲ್ಲದೇ ಇತಿಹಾಸ ವಿಷಯಕ್ಕೆ ಪದವೀಶಿಕ್ಷಕರಾಗುವಂತೆ ತುಂಬುತ್ತಾ, ಬಂದಿರುತ್ತಾರೆ.

ಆದ್ದರಿಂದ ಇತಿಹಾಸ ವಿಷಯಕ್ಕೆ ನಿಮ್ಮ ಮೂಲದಲ್ಲಿ ಉಪನ್ಯಾಸಕರು ಸಹ ಮೂಲದಲ್ಲಿ ವಿವರಿಸಿದಂತೆ ಪದವೀಶಿಕ್ಷಕರಾಗುವಂತೆ ಬಯಸಲಾಗಿರುತ್ತಾರೆ. ಇದರಿಂದ ಈ ವಿಷಯದಲ್ಲಿ ಶೇಕಡಾ 100ರಷ್ಟು ಪದವೀಶಿಕ್ಷಕರಾಗುವಂತೆ ತುಂಬುವವರಾಗಿರುತ್ತಾರೆ. ಸರ್ಕಾರದ ಆದೇಶ ಸಂ: 222/98:48: ಎನ್‌ಎಸ್‌ಆರ್:15: ದಿನಾಂಕ: 5-7-98ರನ್ನು ನಿಯಮ 5, 8 ರಂತೆ ಪದವೀಶಿಕ್ಷಕರಾಗುವಂತೆ ನೇಮಕಗೊಂಡು ಕುಳಿತುಕೊಳ್ಳುವಂತೆ ಪದವೀಶಿಕ್ಷಕರಾಗುವಂತೆ ತುಂಬುವವರಾಗುವಂತೆ.

ಪದವೀಶಿಕ್ಷಕರಾಗುವಂತೆ ತುಂಬುವವರಾಗುವಂತೆ ಪದವೀಶಿಕ್ಷಕರಾಗಿ ಮುಂದುವರಿಸುವಂತೆ ತುಂಬುವವರಾಗುವಂತೆ.

.....

ANNEXURE B

22

1. 12. 1998

560 001.

PROCEEDINGS OF THE DIRECTOR OF PRE-UNIVERSITY EDUCATION. BANGALORE

Date: 4th December 1998

REVIEW APPLICATION NO. PU/AP/5/1998

Present: Sri B.A. Harish Gowda, Director

BETWEEN:

1. Uma Maheshwara N. Hegde,
S/o Nagappa Hegde,
Working as Graduate Assistant,
Manipal Pre-University College,
Manipal - 576 119.

REVIEW - PETITIONER

Represented by Sri Harikrishna S. Holla, Advocate

AND:

1. The Correspondent,
Manipal PU College,
Manipal.

Represented by Sri R. Raghavendra Rao &
Sri A. Madhusudhana Rao - Advocates

2. The Deputy Director of Public Instructions,
Pre-University Education,
Department of Pre-University Education,
Mangalore, D K.
3. The Director of Pre-University Education,
Palace Road,
Bangalore - 560 001.
4. Smt. Roopa L. Bhat,
Lecturer in History,
Manipal Pre-University College,
Mangalore 576 119.

RESPONDENTS

4th respondent represented by Smt. A.R. Sharadamba, Advocate

Mani

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The applicant Sri Uma Maheshwara N. Hegde is working as a graduate assistant in the high school section of the Manipal PU College, Manipal, Udupi district and he has preferred this application under the Educational Institutions (Appellate Authority) Rules, 1998, aggrieved by the appointment of the 4th respondent, viz., Smt. Roopa L. Bhat as a lecturer in History in the said PU College by the 1st respondent management. In fact, this Directorate has approved the said appointment by its proceedings dated 10-7-1998. So, the present proceedings necessarily requires a review of the earlier orders of this Directorate dated 10-7-1998, even though it is not specifically stated so in the application which is filed in the form of an appeal memorandum. Furthermore, this Directorate is impleaded as the 3rd respondent. However, in order to ensure that the applicant is not denied justice these infirmities are overlooked and the memorandum is treated as a review application under Section 132 of the Education Act, 1983.

In the application, it is vehemently urged that the claim of the applicant for promotion to the vacant post of history lecturer was overlooked by the 1st respondent management even though he had the necessary educational qualifications and length of service as required under the then existing rule and the 1st respondent went ahead with filling the vacancy by direct recruitment. It is also contended on behalf of the applicant that as there were eight posts of lecturers and as 7 posts had been filled by direct recruits the vacancy in the post of history lecturer which arose because of the retirement of a promotee should have been filled by promoting an eligible assistant teacher and not by direct recruitment as the rules required filling up of 50% posts by direct recruitment and remaining 50% posts by promotion. The 1st respondent in its counter statement has contended that the applicant was not entitled for promotion as he was not duly qualified in the light of the new Cadre and Recruitment Rules which came into force from 27-5-1998 which requires that an assistant teacher should have taught the subject at the high school level in which he has done post graduation. Admittedly, the applicant is an assistant teacher in kannada, whereas he has done post graduation in history.

Mangal

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The learned counsels for the applicant, the 1st and the 4th respondents have been heard. The learned counsel for the applicant in his arguments has reiterated the averments made by him in the review application. The learned counsel for the 1st respondent has not only argued that the management was right in going in for direct recruitment on the face of disqualification of the applicant but he has also specifically pointed out the material defects in the application which has been submitted in the form of an appeal showing the Director of PU Education as one of the respondents and preferring the memorandum in the form of an appeal against the orders of the Director himself. The learned counsel for the 4th respondent has also argued in the lines of the 1st respondent and has urged that the applicant does not deserve any relief. After having heard the learned counsels on both the sides, I am inclined to condone the material defects in the memorandum filed by the applicant in the form of an appeal that too, impleading this office as one of the respondents, as the very rejection of the application on those grounds may lead to a gross injustice to the applicant. I have, therefore, treated the memorandum as a review application under Section 132 of the Education Act, 1983.

I have gone through the records placed before me by both the parties and I have also examined the file maintained in this office in which the proposal of the 1st respondent wherein the appointment of the 4th respondent was examined and approved by the proceedings dated 10-7-1998. While processing the said proposal of the 1st respondent an important issue seems to have been overlooked by this Directorate: the basic question as to whether the post belonged to the promotee quota or the direct recruitment quota. It is an admitted fact that the college had 8 posts of lecturers, of which 7 posts had been filled by direct recruitment and all the lecturers so recruited are working even now. The post of history lecturer was the only post which was filled by promotion and it had fallen vacant because of the retirement of the then incumbent Sri U.L. Kukkilaya. In any composite pre-university college while filling the posts of lecturers a ratio of 50 : 50 will have to be maintained for direct recruitment and promotion in accordance with the Government Order No.ED 173 SLB 80 dated 14-5-1982. So, the post which fell vacant because of the retirement of Sri U.L. Kukkilaya, should have been filled by promotion as long as a

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suitable candidate was available. The applicant had the requisite qualifications as per the Cadre and Recruitment Rules stood then, i.e., when the post fell vacant and when the recruitment process was initiated. He was entitled for promotion as he had put in more than three years of service. Unfortunately, the claim of the applicant was overlooked without any proper justification. That being the case, I find that this Directorate erred in not considering his pleas and in approving the appointment of the 4th respondent by the 1st respondent.

I, therefore, find that there was gross deviation from the set norms by this Directorate and therefore I am satisfied that this is a fit case for review.

As already said, the applicant is working as an assistant teacher in the 1st respondent college and he has put in a service of 19 years. The records produced by the applicant and the records maintained in this office reveal that he had passed his post graduation in third class in history subject in the year 1990. According to G.O. No. ED 173 SLB 80 dated 11-5-1982, and Cadre and Recruitment Rules which was applicable then, the applicant was clearly eligible for promotion as the post was meant to be filled by promotion.

ORDER

In view of the above findings, the review application is allowed and the earlier orders of this Office bearing No. 11 22 2007 84/97-98 dated 10-7-1998 approving the proposal submitted by the 1st respondent in respect of the recruitment and appointment of Smt. Roopa L. Bhat is withdrawn. The 1st respondent shall fill the vacancy caused by the retirement of Sri U.L. Kukkilaya by promotion.

Margad

Director,
Pre-University Education.

T. G. This is the Annexure... B... stated in the
Affidavit of... Roopa L. Bhat.

Vivek
X, Advocate & Notary, Bengaluru

ANNEXURE C 26
1-7-2002

PROCEEDINGS OF THE GOVERNMENT OF KARNATAKA
BEFORE THE PRINCIPAL SECRETARY TO GOVERNMENT

PRIMARY & SECONDARY EDUCATION

EDUCATION DEPARTMENT

APPEAL NO.24/99(ED 20 SOH 99)

&

Revision Petition NO.30/99 (ED 23 SOH 99)

DATED 1st July 2002.

BETWEEN:

Smt.Roop L Bhat,
W/o.Pradeep Bhat,
Major, Residing at: H.No.C-24-B,
Kailas Quarters, MANIPAL.

... APPELLANT
(Appeal No.24/99)

AND:

1. The Director,
Dept. of Pre-University Education,
Palace Road, BANGALORE-1.
2. The Deputy Director,
Dept. of Pre-University Education,
Udupi, Dakshina Kannada District.
3. The Correspondent,
Manipal Pre-University College,
MANIPAL.
4. Sri,Umamaheshwara Hegde,
S/o.Nagappa Hedge, Major,
Graduate Assistant,
Manipal Pre-University College,
MANIPAL.

... RESPONDENTS

27
REVISION PETITION NO.30/99(ED 23 5011 99)

1. The Correspondent,
Manipal Pre-University College,
MANIPAL.

... REVISION PETITION
(R.P.No.30/99)

AND:

1. The Director,
Dept. of Pre-University Education,
Palace Road, BANGALORE-1.
2. The Deputy Director,
Dept. of Pre-University Education,
Udupi, Dakshina Kannada District.
3. Umamaheshwara Hegde,
S/o.Nagappa Hedge,
Major, Graduate Assistant,
Manipal P.U.College, MANIPAL.

... RESPONDENTS

Appeal No.24/99 is filed under Section 130 of the Karnataka Education Act, 1983 praying to set aside the order dated 4.12.1998 passed by the Director of Pre-University Education, bearing No.PU/AP/5/1998 and to allow this appeal with costs etc.

Revision Petition No.30/99 is filed under Section 131 of the Karnataka Education Act 1983 praying to set aside the order passed by the Director, Pre-University Education, Bangalore dated 4.12.1998 bearing No.PU/AP/5/1998.

The Director of Pre-University Education had approved the appointment of Smt.Roopu L Bhat in his order dated 10.7.1999. Later on the review application by Sri.Umamaheshwara Hegade, the Director of Pre-University re-examined the order dated 10.7.1999 and withdrew the same vide

its order No.PU/AP/5/1998 dated 4.12.1998. This order has been challenged by Smt.Roopla L Bhat in the present appeal.

Both the Appeal and Revision Petition are one and the same. As such both cases are clubbed together. Case was finally heard on 26.3.2002. Sri.S.S.Guthal, Advocate for appellant and Sri.A.Madhusudhana Rao, Advocate for R-3 (Petitioner in Revision Petition No.30/99), in their argument have stated that R-1 has no authority or powers to Review his own order, no review petition is filed. The quota rule for promotion, direct recruitment have come into force with effect from 11.5.1982 this rule comes into effect prospectively. The recruitment made earlier to this rule could not have been considered for purpose of arriving direct recruitment and promotional quota. The R-4 in the main petition is not qualified for selection either by direct recruitment or by promotion. One of the condition for promotion is that the applicant should have been teaching in that subject and passed in the same subject in II Class. In the instant case the R-4 is Kannada Teacher in the High School and he has passed the Master degree in History securing in III Class. He has no experience in the concerned subject for claiming relaxation of age, therefore he is not eligible for the post of History lecturer in direct recruitment. The post to be filled by direct recruitment and promotional posts are not identified. Sri.Venkataram, Advocate for R-4 stated that as per G.O.No.ED 172 SLB 80 dated 11.5.1982 the post should have been filled by promotion, the qualification prescribed is a under-C & R Rules with three years of experience as Assistant Master in High School. As per the order 50% of the posts should be filled by promotion and 50% post by direct recruitment. The post of Lecturer in History fell vacant during 1994 and not 1997 as contended by the petitioner. This is also supported by the representation of R-4 made the Director of Pre-University Education and also letter of the Deputy Director of the Department dated 4.10.1997. The R-4 was all along requesting for promotion to the post of Lecturer in History. The management notified the vacancy for direct recruitment the R-4 was also

29
called for interview, however, the R-4 was not interviewed as he was not interviewed as he was not within the age limit. This is evident from the report of the Deputy Director sent to the Director, Pre-University Education. The two posts filled by the management by direct recruitment includes the one of the petitioner Smt. Roopa L Bhat. The Director of Pre-University Education has stated that R-4 Sri. Umamaheshwara Hegde being senior among the staff and he also obtained Master degree, hence the appointment of petitioner Smt. Roopa L Bhat is withdrawn. In view of this the Director of Pre-University Education is directed to identify the exact number of promotional posts and direct recruitment posts as per rule and review the cases and pass appropriate orders regarding the request of the petitioners within a time limit of 3 months. The case is disposed off accordingly.

Pronounced in the open Court on this day of 15th July 2002.

COPY

Meera C Saksena
(MEERA C SAKSENA)
Principal Secretary to Government,
Primary & Secondary Education,
Education Department

This is the Annexure C stated in the
Affidavit of Roopa L Bhat

[Signature]
K, Advocate & Notary, Bengaluru

ANNEXURE VD

PROCEEDINGS OF THE DIRECTOR OF PRE-UNIVERSITY EDUCATION

NO.PUE-11/C2/CR/Casc-16/98-99

ORDER DATED 30TH OCTOBER 2002

Present: H.S. Ramaprasad, J.A.S.,

BETWEEN

Smt. Roopa L. Bhat,
W/o Pradeep Bhat,
Major, Residing at H.No.C-24-B,
Kailas Quarters,
Manipal.

PETITIONER

AND

1. The Director
PU Education Board,
Palace Road,
Bangalore - 560 001.
2. The Deputy Director,
Dept. Of Pre-University Education,
Udupi, District.
3. The Correspondent,
Manipal Pre-University College,
MANIPAL.
4. Sri Umamaheshwara Hegde,
S/o Nagappa Hegde, Major,
Graduate Assistant,
Manipal Pre-University College,
Manipal.

RESPONDENTS

The appellant in appeal no.24/99 filed an appeal under section 130 of the Karnataka Education Act, 1983 before the Principal Secretary to Government, Education Department, seeking a direction to set aside the order dated 4-12-1998 passed by the 1st respondent Directorate under no.PU/AP/5/1998. The Principal Secretary to Government

in the order dated 1-7-2002 has directed the 1st respondent to identify the exact number of promotional posts and direct recruitment posts as per rules and review the cases and pass appropriate orders regarding the request of the petitioners. Accordingly, the petitioner, 3rd and the 4th respondents were requested to appear before this authority on 22-8-2002 and their evidence with relevant documents. On the said date, the 3rd and the 4th respondent appeared and submitted their depositions.

In the Manipal Pre-University College, Manipal, the post of lecturer in History fell vacant due to the retirement of one Sri Ramachandra Bhat from 1-11-1994 and the post of lecturer in Commerce fell vacant from 19-8-1983. On 23-8-1996, the 3rd respondent management wrote a letter to the 1st respondent Directorate seeking permission to fill these vacant posts.

On 29-11-1997, the Deputy Director of PU Education, Dakshina Kannada, in a letter to the Director has observed that in the High School section run by the 3rd respondent management a qualified assistant master is available in High School section for promotion as lecturer in History, but the management was not ready to promote him. Therefore, the 1st respondent in a letter dated 28-3-1998 directed the 3rd respondent management to fill the vacant post of lecturer in History by promotion since the direct recruitment posts exceeded 50% ratio. But the 3rd respondent management in its letter dated 11-5-1998 expressed its inability to promote the assistant teachers of High School section to the post of lecturer on the following grounds :-

- a) The appellant is a III class M.A., in History and took his degree as an external candidate.
- b) He has taken Kannada, Sanskrit and Psychology as subjects of his study at B.A., and has not studied History at the graduation level.
- c) He has no experience of teaching History at the High School level.
- d) He is incompetent to teach History in English medium.
- e) His classroom teaching is not impressive and not liked by many students and parents.

32

Further, the 3rd respondent management cited the Government order of the Karnataka General Services (PUE recruitment) Rules, 1996 (draft) in no. DPAR 71 SRE 94 dated 13-3-1996, wherein the qualification for the post of lecturer in PU colleges should be a II Class master degree in concerned subjects. Thus, the appellant is not eligible to be promoted as lecturer. By giving these reasons the post of lecturer in History has been filled by direct recruitment by appointing one Smt. Roopa L. Bhat and it has been approved by the 1st respondent Directorate in the order dated 10-7-1998.

Aggrieved by this order of 10-7-1998, the 4th respondent filed a review application under no.5/1998 before this authority on the orders passed on 10-7-1998. In the said review application, the approval of appointment of Smt. Roopa L. Bhat was withdrawn and a direction was issued to the 3rd respondent management to fill the post by promotion.

Aggrieved by the above orders passed by the 1st respondent, the petitioner filed an appeal under no.24/99 and revision petition under no.30/99 before the Principal Secretary to Government, Primary & Secondary Education, Bangalore. The Principal Secretary to Government in the order dated 1-7-2002 has directed to identify the exact number of promotional and direct recruitment posts of lecturers in the 3rd respondent college and pass appropriate orders.

In order to ascertain the promotional posts from the cadre of assistant teachers working in the 3rd respondent management in High School section and direct recruitment posts the staff worked in the 3rd respondent college from 1972 is prepared. The details of which is as follows :

S.N o.	Name and designation	Subject	Mode of appointment	Date of appointment	Case	Remarks
1	U.L.N. Kukkillaya, Principal	History	Promotion Asst. Teacher	1972	-	Retired 1979
2	Dennis D'Silva, Principal	History	Promotion Asst. teacher	6-4-1979	-	Retired 1982

23

3	Narayan Bhat Lecturer	Com.	Direct recruitment	1-8-1972	-	Retired 30-6-2001
	Principal	Com.	Promotion			
4	N. Dayananda Nayak, Lecturer	Physics	Direct recruitment	16-6-1973	BCM	Retired 31-8-2001
	Principal	Physics	Promotion	1-7-2001		
5	T.J. Ignatius, Lecturer	Chemistry	Direct recruitment	16-6-1973	BCM	Working
6	Gouri S. Keroor, Lecturer	Hindi	Direct recruitment	10-7-1974	GM	Working
7	Dadappa Poojari, Lecturer	Econ	Direct recruitment	16-7-1975	BCM	Working
8	K. Raghupathy Bhat, Lecturer	Kannada	Direct recruitment	19-7-1975	GM	Working
9	Subramanya Bhat, Lecturer	Accts.	Direct recruitment	16-8-1975	GM	Retired 31-5-2002
10	B. Bhaskar Rao, Lecturer	English	Direct recruitment	13-7-1977	GM	Working
11	J. Venanarayana, Lecturer	Biology	Direct recruitment	24-7-1978	SC	Working
12	M. Ramachandra Bhat, Lecturer	History	Promotion	24-11-1982	-	Retired 30-10-1994
13	Shivakumar, Lecturer	Commerce	Direct recruitment	17-09-1997	ST	Working

From the above list it is clear that except the post of the principal, all the appointments have been made by direct recruitment. After 1982, two posts have fallen vacant. One is the post of the lecturer in Commerce w.e.f. 19-8-1993 and the post of lecturer in History from 1-11-1994. As per the notification by the Commissioner for Public Instructions dated 22-2-1967, lecturers in the PU colleges should be recruited in the ratio of 50:50, i.e., 50% by direct recruitment and the remaining 50% by promotion from the cadre of assistant teachers from High School section.

On detailed examination, it has been observed in 3rd respondent college, all the appointments of lecturers have been made by direct recruitment except the post of lecturer in History from the inception of the PU College. But in the Composite PU colleges, the post of lecturers 50% of the lecturers have to be filled on promotion from

the cadre of qualified Assistant Teachers and the remaining 50% by direct recruitment. Whereas, in the 3rd respondent college, there are 10 posts of lecturers. But the management has filled only one post of lecturer on promotion. Thus, 4 posts of lecturers have to be filled on promotion from the cadre of Assistant Teachers.

As per the Government order no.ED 173 SLB 80 dated 11-5-1982, 50% of the posts has to be filled by direct recruitment and the remaining 50% by promotion from the cadre of assistant teachers from High School section. Hence, the two posts of lecturer in History and lecturer in Commerce which fell vacant after 1982 should be filled by promotion. From the records it is clear that there is no suitable candidate available in the High School section for the post of lecturer in Commerce and hence that post may be filled by direct recruitment. But for the post of lecturer in History a suitable candidate having 19 years of teaching experience is available in the High School section.

The contention of the 3rd respondent management that the promotee should possess 55% marks in Post Graduation degree course and should have taught the same subjects at the High School is not applicable in the instant case in the light of the Government order no. DPAR 9SRE 99 dated 26-12-2000. Further, as per the said Government order the Assistant teacher has passed the master degree prior to 27-5-1998 and he is having 19 years of teaching experience, which is sufficient qualification to be promoted as a lecturer in History. Thus, the post of lecturer in History which fell vacant due to retirement of one Sri M. Ramachandra Bhat has to be filled on promotion.

ORDER

In view of the above findings, the order dated 4-12-1998 passed by this authority is in accordance with rules. Therefore, the 3rd respondent management is informed to fill up the post of lecturer in History by promotion from the cadre of assistant teachers from the High School section.

This is the Annexure 10 dated in the
Affidavit of Ranga C Bhat

V. K.
K, Advocate & Notary, Bengaluru

Copy

[Signature]
ನಿರ್ದೇಶಕರು
ಪ್ರಾಥಮಿಕ ಶಿಕ್ಷಣ
ಅಧಿಕಾರಿಗಳು-1.

[Signature]
Director,
Pre-University Education.

Tec

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ANNEXURE I E

20968/03

N. B. Rhat

35

IN THE HIGH COURT OF KARNATAKA AT BANGALORE

DATED THIS THE 7TH DAY OF JULY, 2003 /

BEFORE

THE HON'BLE MR JUSTICE H L DATTU

WRIT PETITION NO. 1134/2003 /

C/w. W.P. No. 42955/2002 (S-RES)

W.P No 1134/2003

BETWEEN

MANIPAL PRE-UNIVERSITY COLLEGE
MANIPAL 576 119
UDUPI DISTRICT
REP BY ITS CORRESPONDENT
RAMESH U PAI

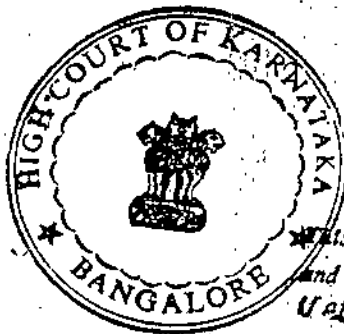
PETITIONER

(BY SRI K RAGHAVENDRA RAO, ADV)

AND

1 STATE OF KARNATAKA
REP BY ITS SECRETRY TO THE GOVT
(PRIMARY & SECONDARY EDUCATION)
M S BUILDINGS
BANGALORE 560 001

DIRECTOR
PRE UNIVERSITY EDUCATION
PALACE ROAD
BANGALORE 560 001



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and Court Fee Stamps of Rs 15/-
Used.

11
fee in cash

36
3 DEPUTY DIRECTOR
DEPT OF PRE UNIVERSITY EDUCATION,
UDUPI,
UDUPI DISTRICT

4 UMAMAHESHWARA HEGDE
GRADUATE ASSISTANT
MANIPAL PRE UNIVERSITY COLLEGE
MANIPAL 576 119

5 ROOPA L BHAT
W/O PRADEEP BHAT
AGED 35 YRS
LECTURER IN HISTORY
MANIPAL PRE UNIVERSITY COLLEGE
MANIPAL 576 119
UDUPI DISTRICT

RESPONDENTS

(BY SRI SRINIVASAMURTHY GA FOR R1-3
SRI HARIKRISHNA S HOLLA, ADV, FOR R-4
SRI N B BHAT, ADV, FOR R-5)

W P NO 42955/2002

BETWEEN

ROOPA L BHAT
W/O PRADEEP BHAT
AGED 35 YRS
LECTURER IN HISTORY
MANIPAL PRE-UNIVERSITY -
COLLEGE, MANIPAL - 576 119
UDUPI TALUK & DIST

PETITIONER

(BY SRI N B BHAT, ADV)



37

1 STATE OF KARNATAKA
BY SECRETARY TO GOVT
EDUCATION DEPARTMENT
(PRIMARY & SECONDARY
EDUCATION), M S BUILDING
BANGALORE - 1

2 DIRECTOR
PRE-UNIVERSITY EDUCATION
PALACE ROAD
BANGALORE - 1

3 CORRESPONDENT
MANIPAL PRE-UNIVERSITY
COLLEGE
MANIPAL - 576 119
UDUPI TALUK & DIST

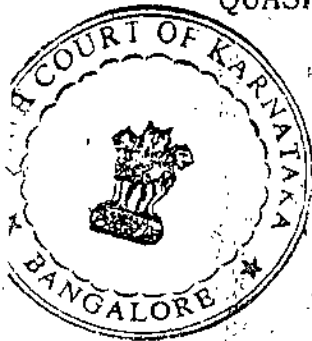
4 UMAMAHESHWARA HEGDE
GRADUATE ASSISTANT
MANIPAL PRE-UNIVERSITY
COLLEGE
MANIPAL - 576 119
UDUPI TALUK & DIST

RESPONDENTS

(BY SRI HARIKRISHNA S HOLLA, ADV, FOR R-4
SRI SRINIVASA MURTHY, GA, FOR R-1 & 2
SRI K RAGHAVENDRA RAO & MADHUSUDAN, ADV, FOR R-3)

W P NO 1134/2003 IS FILED UNDER ARTICLES 226 AND
227 OF THE CONSTITUTION OF INDIA WITH A PRAYER TO
QUASH VIDE ANX G DT 30 10 2002 BY R2 AND ETC

W P NO 42955/2002 IS FILED UNDER ARTICLES 226
AND 227 OF THE CONSTITUTION OF INDIA WITH A PRAYER TO
QUASH THE ORDER DATED 30 10 2003 AND ETC



38
THESE WRIT PETITIONS COMING ON FOR ORDERS THIS
DAY, THE COURT MADE THE FOLLOWING,

ORDER

In these writ petitions filed under Articles 226 and 227 of the Constitution, petitioners are calling in question the correctness or otherwise of the order passed by the Director of Pre-university Education, Bangalore, dated 30.10.2002

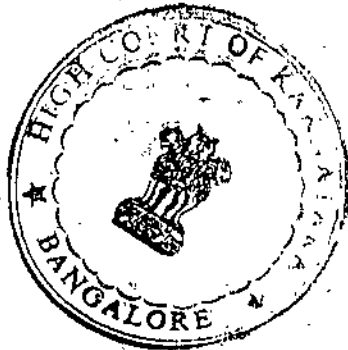
2 In my opinion, if for any reason, petitioners are aggrieved by the aforesaid order, they have to file an appropriate appeal before the State Government as provided under Section 130 of the Karnataka Education Act. That remedy provided under the Statute itself is not only an effective but also an efficacious remedy. Without exhausting that remedy, in my opinion, petitioners could not have approached this Court.

3 In that view of the matter, without going into the other details, these writ petitions are disposed off. Liberty is reserved to the petitioners, to file an appropriate appeal as provided under Section 130 of the Karnataka Education Act within a month's time from today. If such an appeal is filed by the petitioners within the



39

time granted by this Court, the Appellate Authority shall decide the same on merits without reference to the period of limitation All the other contentions of both the parties left open Ordered accordingly



Sd/-
Judge

TRUE COPY
H. V. Ranga
Section Officer
High Court of Karnataka
Bangalore-560 001
11/7/03

LRS/07072003

- (a) The date on which the application was made 8/7/03
- (d) The date on which charges and additional charges, if any, are called for 11/7/03
- (c) The date on which charges and additional charges, if any, are deposited/paid 11/7/03
- (d) The date on which the copy is ready 11/7/03
- (e) The date of notifying that the copy is ready for delivery 11/7/03
- (f) The date on which the applicant is required to appear on or before 14/7/03
- (g) The date on which the copy is delivered to the applicant 11-7-03
- (h) Examined by sg cer

This is the Annexure E stated in the Affidavit of Prasad Chhat
Vivek
K, Advocate & Notary, Bengaluru

ANNEXURE F

40

PROCEEDINGS OF THE GOVERNMENT OF KARNATAKA
BEFORE THE ADDITIONAL SECRETARY-I TO GOVERNMENT
PRIMARY & SECONDARY EDUCATION
EDUCATION DEPARTMENT

APPEAL NO.73/2003 (ED 110 SOI 03) C/W Appeal No.78/2003 (ED 171 TPU 03)

Appeal No.73/2003

Between:

Smt.Roop L Bhat,
Lecturer in History,
Manipal Pre-University College,
MANIPAL-576 119.

... APPELLANT

✓ (By Sri.Divakar for Sri.N.B.Bhat, Advocates)

And:

1. Director,
Pre-University Education,
Palace Road,
BANGALORE-560 001.

2. Correspondent,
Manipal Pre-University College,
MANIPAL-576 119,
Udupi Taluk & District.

3. Sri.Umamaheshwara Hegde,
Graduate Assistant,
Manipal Pre-University College,
MANIPAL-576 119,
Udupi Taluk & District.

... RESPONDENTS

(Respondent-2 by Sri.A.Madhusudana Rao and
Respondent-3 by Sri.S.N.Venkataramu, Advocates)

41 2
Appeal No.78/2003

Between:

Manipal Pre-University College,
Manipal-576 119,
Udupi District.
Represented by its Correspondent,
Sri.Ramesh U Pai.
(By Sri. A. Madhusudana Rao, Advocate)
AND:

... APPELLANT

1. Director,
Pre-University Education,
Palace Road,
BANGALORE-560 001.
2. Deputy Director,
Department of Pre-University Education,
Udupi, Udupi District.
3. Sri.Umamaheshwara Hegde,
Graduate Assistant,
Manipal Pre-University College,
Manipal-576 119.
4. Smt.Roopu L Bhat,
Lecturer in History,
Manipal Pre-University College,
Manipal-576 119,
Udupi District.
(R-3 by Sri. S.N. Venkataramu
and R-4 by Sri. Divakar, Advocates)

...RESPONDENTS

These are appeals filed under Section 130 of the Karnataka Education
Act, 1983.

3 42

2. In Appeal No.73/2003 the prayer is to quash the order bearing No.PUE-11/C2/CR/Case-16/98-99 dated 30-10-2002 (Annexure-F) passed by the 1st respondent whereby the 2nd respondent (third respondent in the impugned order) has been directed to fillup the post of Lecturer in History held by the appellant by way of promotion from the cadre of Assistant Teachers from the High School Section. The appellant - a direct recruit, has prayed that the respondents be directed to continue her in service as Lecturer in History in the second respondent college.

3. In Appeal No.78/2003, the prayer is to set aside the order bearing No. PUE-11/C2/CR/Case-16/98-99 dated 30-10-2002 (Annexure-G) passed by the 1st respondent therein. The said order dated 30-10-2002 impugned in this appeal is the same as the one impugned in Appeal No.73/2003. Therefore both these appeals are heard and disposed of together.

4. Manipal Pre-University College is an aided educational institution. It has a High School section as well as a Pre-University Section. A post of Lecturer in History fell vacant on 30-10-1994 due to the superannuation retirement of one Sri.M.Ramachandra Bhat. The vacancy was advertised in "Udaya Vani" a Kannada daily in its edition dated 2-7-1997. Both Smt.Roopal Bhat and Sri.Umamaheshwara Hegde competed for the said direct recruitment. Smt.Roopal Bhat was selected and appointed by the management as Lecturer in History through a process of interview. The letter of appointment was issued on 8-9-1997. Smt.Roopal Bhat reported for duty

143 4
on 11-9-1997. The Director of Pre-University Education (for short 'The Director') approved her appointment with grant-in-aid with effect from 10.7.1998 vide his order dated 10-7-1998.

5. The said appointment was challenged before the Director by Sri.Umamaheshwara Hegde in an appeal. The Director treated the appeal as review application. By his order dated 4-12-1998 in Review Application No.PU/AP/5/98 the Director withdrew his earlier order dated 10-7-1998 whereby he had approved the appointment of Smt.Roopu L Bhat with grant-in-aid; and directed that the vacancy be filled in by promotion.

6. The said order dated 4-12-1998 of the Director was challenged before the Principal Secretary to Government (Primary and Secondary Education), Education Department in Appeals No.24/99 and 30/99 by Smt.Roopu L Bhat and the Manipal Pre-University College respectively, under Section 130 of the Karnataka Education Act, 1983. By a common order dated 1-7-2002 in the aforesaid two appeals, the Government directed the Director to identify the exact number of promotional posts and direct recruitment posts as per rules and review the cases and pass appropriate orders.

7. In pursuance of the aforesaid order dated 1-7-2002, the Director heard the concerned parties and passed the impugned order dated 30-10-2002, upholding his earlier order dated 4-12-1998; with a further direction to the Manipal PU College to fillup the post of Lecturer in History by promotion from the cadre of Assistant Teachers from the High School Section.

8. The said impugned order dated 30-12-2002 was challenged before the Hon'ble High Court of Karnataka in Writ Petition Nos.1134/2003 and 42955/2002 by the Manipal Pre-University College and Smt.Roopaa L Bhat respectively. The Hon'ble High Court by a common order dated 7-7-2003 disposed of the writ petitions observing that an alternative remedy is available under Section 130 of the Karnataka Education Act, 1983. Hence these appeals before this authority.

9. At a time when such appeals under Section 130 of the Karnataka Education Act, 1983 were being handled by the Secretary to Government (Primary and Secondary Education), Education Department, an interim order was passed on 13-8-2003 in Appeal No.73/2003 staying the operation of the impugned order dated 30-10-2002 passed by the Director till further orders.

10. The Director has filed his statement of objections. Heard the counsels and perused the records.

11. The stand taken by the Director in the impugned order dated 30-10-2002 is that there are 10 posts of Lecturers in the college; therefore keeping in view the 50:50 ratio, 5 posts have to be filled up by promotion; the management has filled in only one post of Lecturer on promotion; thus 4 posts of Lecturers have to be filled on promotion; since Sri. Umamaheshwara Hegde is eligible and available for promotion, the post of Lecturer in History which fell vacant due to the retirement of Sri. M. Ramachandra Bhat has to be filled on promotion.

45
12. Sri. Umamaheshwara Hegde in his statement of objections in respect of Appeal No. 73/2003 interalia, has urged that, "since the 2nd respondent management has failed to maintain the ratio, the first respondent has rightly directed 2nd respondent to fill up the post by appointment of this respondent to the post of Lecturer".

13. Smt Roopa L. Bhat- the appellant in Appeal No. 73/2003 has, interalia, urged that since Sri. Umamaheshwara Hegde was not qualified for promotion to the post of Lecturer in History, the post was advertised for direct recruitment.

14. Manipal pre-university college- the appellant in Appeal No 78/2003 has, interalia, urged that, since the first vacancy of Lecturer in History that arose, on 20-11-1982 - i.e. after the cadre & recruitment Rules came into force was filled- in by promotion; the second vacancy that arose due to the retirement of Sri. Ramachandra Bhat has been filled-in by Direct recruitment and thus, there is no violation of the quota rule.

15. As seen from the impugned order dated 30-10-2002 the Director has proceeded on the erroneous assumption that the rule requiring filling up of 50% of posts of Lecturers by Direct recruitment and 50% of posts by promotion, mandates that at any given point of time, an aided PU College shall have 50% directly recruited lecturers and 50% promotee lecturers. That the

46

Director has gone by the aforesaid erroneous presumption is clear from the following paras extracted from the impugned order:-

"On detailed examination, it has been observed in 3rd respondent college, all the appointments of lecturers have been made by direct recruitment except the post of Lecturer in History from the inception of the PU College. But in the Composite PU Colleges, the post of lecturers 50% of the lecturers have to be filled on promotion from the cadre of qualified Assistant Teachers and the remaining 50% by direct recruitment. Whereas, in the 3rd respondent college, there are 10 posts of lecturers. But the management has filled only one post of lecturer on promotion. Thus, 4 posts of lecturers have to be filled on promotion from the cadre of Assistant Teachers.

As per the Government order No.ED 173 SLB 80 dated 11-5-1982, 50% of the posts has to be filled by direct recruitment and the remaining 50% by promotion from the cadre of assistant teachers from High School section. Hence, the two posts of lecturer in History and lecturer in Commerce which fell vacant after 1982 should be filled by promotion. From the records it is clear that there is no suitable candidate available in the High School section for the post of lecturer in Commerce and hence that post may be filled by direct recruitment. But for the post of lecturer in History a suitable candidate having 19 years of teaching experience is available in the High School section."

16. It is a well established principle of law that calculation of quota between direct recruits and promotees is not that simple arithmetic. The law relating to quotas holding the field as of now, is the one declared by the Hon'ble Supreme Court of India in Gopal Bhimappa Vs State of Karnataka. Detailed guidelines on implementation of the aforesaid judgement of the Hon'ble Supreme Court in Gopal Bhimappa's case have been issued by Government vide Official Memorandum No.ಆಸು 43 ಸಸಿ 87 dated 14-12-

1987. As can be seen from para. 17 below, the Cadre & Recruitment Rules applicable to Government pre-university colleges, is applicable to aided pre-university colleges also. Therefore, the Law laid down by the Honourable Supreme Court of India regarding quota rule in the State Civil Services, is also equally applicable to aided pre-university colleges. The said guidelines shall mutatis-mutandis be binding on aided pre-university colleges in the same way as the judgement of the Hon'ble Supreme Court of India on quota rule is binding on such institutions.

17. During the course of arguments, the counsels were asked to establish that the cadre and recruitment rules framed by the Government in respect of Government PU Colleges is applicable to aided colleges also. They relied upon Government order No 11D 173 SLB 80 dated 11-5-1982 which, inter alia, directs that "The posts of Lecturers in aided junior colleges shall be filled in the ratio of 50% by promotion and 50 % by direct recruitment on par with Government junior colleges" (Emphasis supplied). The proviso to Section 87 of the Karnataka Education Act, 1983, which is reproduced below also fortifies their contention:-

"87. Qualifications, conditions of service of employees.- The State Government may after previous publication make rules regulating the recruitment and conditions of service (including rights as regards disciplinary matters) of the employees in recognized private educational institutions:

- Provided, that the minimum qualifications for recruitment, age of recruitment, and retirement and

benefits of retirement for employees in educational institutions receiving maintenance grant from the State Government shall be the same as those applicable for the corresponding category of employees, if any, in State Institutions unless otherwise prescribed."

18. The recruitment in question relating to one post of Lecturer in History in Manipal PU College has been made during July-September 1997. The cadre and recruitment rules that was holding the field during that period was the Karnataka Education Department Services (Department of Public Instruction) (Recruitment) Rules, 1967, ('1967 rules' for short) as amended by the Karnataka Education Department Services (Department of Public Instruction) (Recruitment) (Amendment) Rules, 1983 (Government Notification No.ED 423 DPI 81 dated 29-6-1983). Though the said rules prescribed 50:50 quota between direct recruitment and promotion, it did not specify how the quota had to be calculated viz., whether the quota had to be calculated for the cadre of Lecturers as a whole or whether the quota had to be calculated subject-wise. However, the successor rules viz., the Karnataka General Services (Pre-University Education) (Recruitment) Rules, 1996 (Government Notification No.DPAR 71 SRE 94 dated 27-5-1998 published in Karnataka Gazette dated 27-5-1998) ('1996 rules' for short) specifies as to how the quota has to be calculated. The note at Column 5 of the schedule to the said rules under Sl.No.8 pertaining to the category of posts of lecturers is reproduced below:-

"Note:- The number of posts to which recruitment is to be made, both by Direct Recruitment and by Promotion, shall

49
be reckoned subjectwise or language-wise as the case may be."

In absence of anything to the contrary in the 1967 rules, it has to be presumed that under the 1967 rules - also the same method of classification of direct recruitment and promotional vacancies was to be followed.

19. The post of Lecturer in history in question has been so far filled- in by the following methods:-

Sl. No.	Name	Method of recruitment	Date of appointment	Remarks
1	Sri. U.L.N.Kukkillaya	Promotion	1972	Retired in 1979
2	Sri.Dennis D'Silva	Promotion	6-4-1979	Retired on 20-11-1982
3	Sri.M.Ramachandra Bhat	Promotion	24-11-1982	Retired on 30-10-94
4	Smt. Roopa L. Bhat	Direct recruitment	11-9-1997	Impugned appointment

20. Going by the principles of determination of quota between direct recruitment and promotion referred to at paras 16-18 above, the classification of the post of lecturer in History in question shall be as follows. Prior to 11-5-1982 there were no rules regulating recruitment to the posts of Lecturers in aided PU Colleges. By Government Order No. ED 173 SLB 80 dated 11.5.1982, it has been directed that the posts of Lecturers in aided Junior Colleges shall be filled in the ratio of 50% by promotion and 50% by direct recruitment on par with the Government Junior Colleges. Though para 3 (iii) of the preamble to the said Government Order states that the Commissioner for Public Instructions had recommended to government that 50:50 ratio be given

SD

retrospective effect from the starting of the junior college, the order portion of the said Government Order does not make any such specification. Therefore, it has to be deemed that the recruitment rules applicable to Government PU Colleges, has become applicable to aided PU colleges with effect from 11-5-1982. Thus, the promotion of Sri.U.L.N.Kukkillaya was during "No rule" period and therefore cannot be taken into consideration for purposes of these computations. The computation as per the provisions of O.M. No. ಸಿಆಸೂಚಿ 43

ಸಿಆಸೂಚಿ-87 dated 14-12-1987 shall be as follows:-

Post : LECTURER IN HISTORY

Sl. No.	Vacancy No.	Date on which the vacancy arose	Cause of the vacancy	Quota to which the vacancy belongs to as per O.M. dated 14-12-1987	Quota for which the vacancy was actually utilised
1	1	20-11-82	Retirement of Sri.Dennis D'Silva	Direct Recruitment	Promotion
2	2	30-10-94	Retirement of Sri.Ramachandra Bhat	Promotion	Utilised for the impugned direct recruitment of Smt. Roopa L.Bhat.

In the 1967 and the 1996 cadre and recruitment rules while referring to the two methods of recruitment, the rules first refers to direct recruitment and then to promotion. Therefore, after the quota rule came into force, the first vacancy has to go to direct recruitment, the second vacancy to promotion and so on. Thus, as can be seen from the above table the direct recruitment vacancy that

5) arose on 20-11-1982 was actually utilized for promotion of

Sri.M.Ramachandra Bhat. That direct recruitment vacancy gets carried forward and set-off against the promotion vacancy that arose on 30-10-1994 due to the retirement of Sri.M.Ramachandra Bhat. It is against the said vacancy caused by the retirement of Sri.Ramachandra Bhat that Smt.Roopaa L Bhat has been appointed as a Direct recruit Lecturer in History. Thus, Smt.Roopaa L. Bhat's direct recruitment has been made against a direct recruitment vacancy and there is no violation of quota rules in her appointment.

21. Thus, the calculation of quota between Direct recruitment and promotion in the category of Lecturer in History in PU College, Manipal made by the Director in the impugned order dated 30-10-2002 is misconceived and unlawfull and is therefore hereby set aside.

22. But the question is whether Smt. Roopaa L. Bhat's appointment is in accordance with the policy of reservations in favour of scheduled castes etc. or not? No authentic information is available in this regard in the records produced before this authority. No body has advanced any argument in this regard. For purposes of reservations in favour of the Scheduled Castes, Scheduled tribes and other backward classes in aided pre-university colleges, all the posts of lecturers in a college, irrespective of the subjects, is taken as one unit. Otherwise, majority of aided pre-university colleges have a single post of Lecturer in each subject and since single posts are exempt from the policy of reservations, all the posts of Lecturers in majority of aided pre-

university colleges would go out of the purview of reservations. Direct recruitment and promotion have different reservation rosters. Direct recruitment is subject to both vertical and horizontal reservation. Therefore, the Director of Pre-university Education shall examine the issue and pass appropriate orders in this matter, within a period of three months from the date of this order. Unless there is already a vacancy register in the form prescribed by Official Memorandum No DPAR 28 SRR 85 dated 27-1-1986, a vacancy register will have to be got prepared now in that form, in respect of the posts of Lecturers since the inception of the college. As seen from the advertisement issued by the management in "Udayavani" dated 2-7-1997, calling for applications for filling-up of the post of Lecturer in History in question, the post has been classified as belonging to "General Merit". If the Director finds that the post is a "General Merit" post, then Smt Roopa L. Bhat shall continue in the post; otherwise the authorities concerned shall take necessary action to terminate her services. If the Director finds that the post is not a general merit post, grant-in-aid in respect of that post shall cease from the date of the order of the Director.

23. The contentions regarding the ineligibility of Sri. Umamaheshwara Hegde for promotion to the cadre of Lecturer in History are baseless and untenable. The very same contentions had been taken before the Director. Those contentions have been effectively met by the Director in the penultimate para of the impugned order dated 30-10-2002. I agree with those findings.

53

regarding the eligibility of Sri. Umamaheshwara Hegde for promotion as Lecturer in History; and hold that Sri. Umamaheshwara Hegde is eligible for promotion to the cadre of Lecturer in History as per the recruitment rules. However, this finding should not be mistaken as any direction by this authority to promote Sri. Umamaheshwara Hegde.

24. These appeals are disposed of in terms of paras 20, 21, 22 and 23 above. The Director of Pre-university Education is directed to ensure that each aided pre-university college maintains cadre-wise vacancy registers in the form prescribed by official Memorandum No. DPAR 28 SRR-85 dated 27-1-1986, so as to avoid such litigations.

25. Pronounced in the open Court on the 8th day of October, 2004.

"Attested"

Siddeshwar
Secretary to Government
Education Department
(Secondary)

(M. UMESH) 8/10/04
Additional Secretary-I to Government,
Primary & Secondary Education,
Education Department.

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This is the Annexure... stated in the
Affidavit of... Ranga C. Shastri

Vivek
K, Advocate & Notary, Bengaluru

ANNEXURE

A Madhusudhan Rao

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IN THE HIGH COURT OF KARNATAKA AT BANGALORE

DATED THIS THE 29th DAY OF JUNE 2007

BEFORE

THE HON'BLE MR. JUSTICE N. ANANDA

WRIT PETITION NO. 45979/2004 (S-PRO)

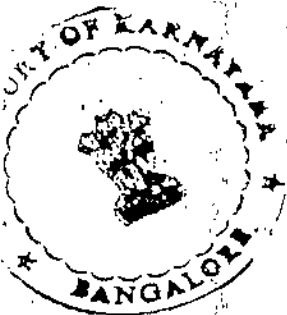
BETWEEN:

Uma Maheshwara N. Hegde,
S/o Nagappa Hegde,
Aged about 52 years,
Working as Graduate Assistant,
Manipal Pre-University College,
Manipal-576 119.

(By Sri. Harikrishna S. Holla, Adv. for petitioner)

AND:

1. Government of Karnataka,
Primary & Secondary Education,
Education Department,
M.S. Buildings,
Bangalore-560 001.
Rep. by its Addl. Director.
2. The Director of Pre-University
Education, Palace Road,
Bangalore-560 001.
3. Smt. Roopa L. Bhat,
Lecturer in History,
Manipal Pre-University College,



Pages 18
and Court fees of Rs. 18 paid in cash
if affirmed

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Manipal - 576 119.

4. Manipal Pre-University College,
Manipal-576 119.
Udupi District,
Rep. by its Correspondent
Sri.Ramesh U. Pai.

RESPONDENTS

(By Sri.H. Hanumanthappa, HCGP for R1 & R2,
Sri.N.B. Bhat, Adv. for R3,
Sri.K. Raghavendra Rao, Adv. for R4)

This memorandum of writ petition is filed under Articles 226 and 227 of the Constitution of India praying to quash the order dated 8.10.2004 passed by the Additional Secretary-1 to Government, Primary and Secondary Education, vide Annexure-T, and to direct respondents 2 and 4 to promote petitioner to the post of lecturer in History, and etc.

The petition coming on for hearing this day, the Court made the following order:

ORDER

The petitioner joined IV Respondent College as a Graduate Assistant during the year 1979. Subsequently, the petitioner obtained Post Graduate Degrees in M.A. Political Science, History and Kannada. It is the grievance of petitioner that the post of lecturer in a Pre-University College has to be filled up in the ratio of 50% by promotion and 50% by direct recruitment.



n. shrinivas

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2. That being so, III Respondent issued a Notification Annexure-D dated 2.7.1997 notifying 2 vacancies in the post of Lecturers in Commerce and History. This notification was issued contrary to rules. Notwithstanding the same, III respondent was appointed as lecturer in the IV respondent College.

3. The petitioner questioned the appointment of III respondent before the Director of Pre-University Education Board by filing a Review Application. The Director of PUE Board by order dated 4.12.1998 allowed the Review Application and set aside the appointment of III respondent. As against this order, the III respondent filed an appeal before the Additional Secretary to Primary & Secondary Education Department. The IV respondent College had also filed an Appeal. Both the appeals were heard together and a common order was passed wherein the Additional Secretary to Primary & Secondary Education Department has given the following directions to the Director of PUE Board:

n. Anandh



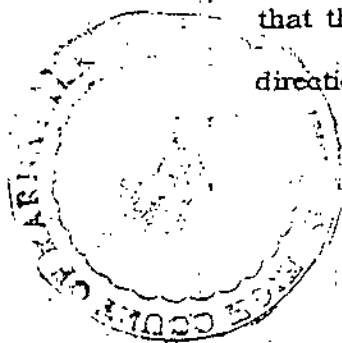
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"As seen from the advertisement issued by the management in "Udayavani" dated 2.7.1997 calling for applications for filling up of the post of Lecturer in History in question, the post has been classified as belonging to "General Merit". If the Director finds that the post is a "General Merit" post, then Smt. Roopa L. Bhat shall continue in the post; otherwise the authorities concerned shall take necessary action to terminate her services. If the Director finds that the post is not a general merit post, grant-in-aid in respect of that post shall cease from the date of the order of the Director."

It is also held in the said order that the petitioner is eligible for promotion to the cadre of lecturer in History as per Recruitment Rules. However, the finding shall not be considered as a direction given by the Addl. Secretary to Government, Primary & Secondary Education Department to the authorities concerned.

4. After disposal of the above appeals, it appears, that the Director has not taken any action pursuant to the directions given in the aforesaid order. The promotion of the

N. Ananda



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petitioner to the cadre of lecturer has also not been considered.

5. In the Objection Statement filed on behalf of the II respondent i.e. the Director of PUE Board, nothing is stated about the compliance of the direction issued by the Addl. Secretary to Primary and Secondary Education Department, in Appeal No.73/2003 (ED) 110 SOH 03) C/W Appeal No.78/2003 (ED 171 TPU 03). Further it is stated in the objection statement that one post of lecturer in History has fallen vacant and as per roster this post has to be filled up by promotion.

6. I have heard the learned Counsel for the parties.

7. As could be seen from the objection statement filed by II respondent, there is no compliance of the order passed by the Addl. Secretary to Primary and Secondary Education Department, in Appeal No.73/2003 (ED) 110 SOH 03) C/W Appeal No.78/2003 (ED 171 TPU 03) by the II respondent. The II respondent has not taken further steps to consider the case of the petitioner for promotion to the

N. Shinde



59

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post of lecturer in History, if the petitioner is found otherwise eligible. It is clear from the objection statement filed by the II respondent that the post of lecturer in History has fallen vacant and this post has to be filled up by promotion. Under the circumstances, respondents II and IV cannot have any difficulty in considering the case of petitioner for promotion to the post of Lecturer in History if the petitioner is found to be otherwise eligible and pass appropriate orders in terms of the directions issued by Addl. Secretary to Primary and Secondary Education Department, in Appeal No.73/2003 (ED) 110 SOH 03) C/W Appeal No.78/2003 (ED 171 TPU 03) dated 8.10.2004. Therefore, I pass the following:

ORDER

The writ petition is allowed with the above observations. No costs.



Sub/

This is the Annexure... stated in the
Affidavit of... Roopa Chhat

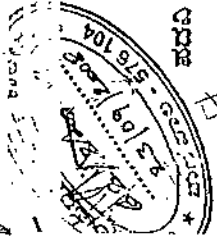
Vivek

Sd/-
Judge

K, Advocate & Notary, Bangalore

TRUE COPY
9/8/07
Jc Section Officer
High Court of Karnataka
Bangalore-560 001.

T.O

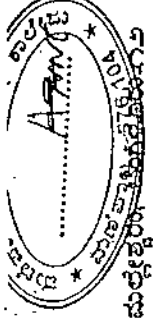


ANNEXURE I

ಕರ್ನಾಟಕ ಸರ್ಕಾರ

ಪದವಿ ಪೂರ್ವ ಶಿಕ್ಷಣ ಆಯುಕ್ತರ ಕಛೇರಿ, ಗ್ರಾನೇ ಕ್ರಾಸ್ ಮಲ್ಲೇಶ್ವರನಗರ, ಬೆಂಗಳೂರು

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ಪದವಿ ಪೂರ್ವ ಶಿಕ್ಷಣ ಇಲಾಖಾ ಆಯುಕ್ತರ ನಡವಳಿಕೆಗಳು

ವಿಷಯ: ಪುಸ್ತಕಗಳು ಪದವಿ ಪೂರ್ವ ಕಾಲೇಜು, ಮಣಿಪಾಲ, ಉಡುಪಿ ಜಿಲ್ಲೆ
ಇಲ್ಲಿನ ಇತಿಹಾಸ ಉಪನ್ಯಾಸಕರ ಹುದ್ದೆಯನ್ನು ತುಂಬುವ ಬಗ್ಗೆ

೧. ಮಣಿಪಾಲ-ಪದವಿ ಪೂರ್ವ ಕಾಲೇಜು, ಮಣಿಪಾಲ, ಉಡುಪಿ ಜಿಲ್ಲೆ ಇದು ಒಂದು ಅನುದಾನಿತ ಸಂಯುಕ್ತ ಪದವಿ ಪೂರ್ವ ಕಾಲೇಜು, ಇಲ್ಲಿ ಇತಿಹಾಸ ಉಪನ್ಯಾಸಕರಾಗಿದ್ದ ಶ್ರೀ ಎಂ ರಾಮಚಂದ್ರ ಭಟ್ ರವರು ದಿನಾಂಕ ೩೦/೧೦-೧೯೯೪ ರಂದು ವಯೋ ನಿವೃತ್ತಿ ಹೊಂದಿದ್ದರು. ಇಲ್ಲಿ ಇತಿಹಾಸ ಉಪನ್ಯಾಸಕ ಹುದ್ದೆಯು ಸಾಲಿಯಾಗಿಯಿತ್ತು. ಪ್ರೌಢಶಾಲಾ ವಿಭಾಗದಲ್ಲಿ ಸಹ ಶಿಕ್ಷಕರಾದ ಶ್ರೀ ಉಮಾ ಮಹೇಶ್ವರ ಹೆಗ್ಗಡೆಯವರು ತಮಗೆ ಇತಿಹಾಸ ಉಪನ್ಯಾಸಕರ ಹುದ್ದೆಗೆ ಒಬ್ಬ ನೀಡಬೇಕೆಂದು ಆದಳಿಕೆ ಮಂಡಳಿಗೆ ಮನವಿವಿನ್ನು ಸಲ್ಲಿಸಿರುತ್ತಾರೆ. ಆದಳಿಕೆ ಮಂಡಳಿಯವರು ಈ ಹುದ್ದೆಯನ್ನು ತುಂಬಲು ದಿನಾಂಕ ೨-೭-೧೯೯೭ ರಂದು ಉದಯನಾಥ ದಿನಪಟ್ಟಿಕೆಯಲ್ಲಿ ಇತಿಹಾಸ ಉಪನ್ಯಾಸಕರ ಹುದ್ದೆಗೆ ಜಾಹೀರಾತು ನೀಡಿ ದಿನಾಂಕ ೧೧-೭-೯೭ ರಂದು ಸೂರ್ಯನ ನೆರೆಯ ನೇಮಕಾತಿ ಪ್ರಕ್ರಿಯೆಯ ಮೂಲಕ ಶ್ರೀಮತಿ ರೂಪ ಎಲ್ ಭಟ್‌ರವರನ್ನು ಆಯ್ಕೆ ಮಾಡಿ ದಿನಾಂಕ ೧೧-೯-೯೭ ರಂದು ನೇಮಕಾತಿ ಮಾಡಿಕೊಂಡು ಅನುಮೋದನೆಗಾಗಿ ಪಲ್ನಾ ಉಪನಿರ್ದೇಶಕರ ಮೂಲಕ ಈ ಇಲಾಖೆಗೆ ಪ್ರಸ್ತಾವನೆಯನ್ನು ಸಲ್ಲಿಸಿರುತ್ತಾರೆ. ಸದರಿ ಪ್ರಸ್ತಾವನೆಯನ್ನು ಪರಿಶೀಲಿಸಿ ಈ ಕಛೇರಿಯ ಆದಳಿಕೆ ಸಂಖ್ಯೆ ಪಪೂತಿ/೧೧/೨೨/ಆರ್/ಸೇಮ/೯೭-೯೮ ದಿನಾಂಕ ೧೦-೭-೧೯೯೮ ರಲ್ಲಿ ಅನುಮೋದಿಸಲಾಗಿದೆ.

೨. ಶ್ರೀ ಉಮಾ ಮಹೇಶ್ವರ ಹೆಗ್ಗಡೆಯವರು ಶ್ರೀಮತಿ ರೂಪಾ ಎಲ್ ಭಟ್ ರವರ ಸೇವಾಕಾಲಿಯನ್ನು ಆಕ್ಟೋಬರ್ ನಿರ್ದೇಶಕರು, ಪದವಿ ಪೂರ್ವ ಶಿಕ್ಷಣ ಇಲಾಖೆ ಇಲಾಖೆಗೆ ಮೇಲ್ಪಟ್ಟಿಯನ್ನು ಸಲ್ಲಿಸಿದ್ದರು. ನಿರ್ದೇಶಕರು ಸದರಿ ಮೇಲ್ಪಟ್ಟಿಯನ್ನು ಪುನಃ ಪರಿಶೀಲಿಸಿ ಅರ್ಜಿಯನ್ನು (ಪುನಃ ಪರಿಶೀಲಿಸಿ ಅರ್ಜಿ ಸಂಖ್ಯೆ ಒಂಟುಎಸ್/೨೯/೧೯೯೮) ಪರಿಶೀಲಿಸಿ ದಿನಾಂಕ ೧೦-೭-೧೯೯೮ರ ಆದಳಿಕೆಯನ್ನು ಪುನಃ ಪರಿಶೀಲಿಸಿ ಮಾಡಿ ಪುನಃ ಪರಿಶೀಲಿಸಿ ಅರ್ಜಿ ಸಂಖ್ಯೆ ಒಂಟುಎಸ್/೨೯/೯೮ರ ದಿನಾಂಕ ೨೧-೧೦-೧೯೯೮ರ ಆದಳಿಕೆಯಲ್ಲಿ ಶ್ರೀಮತಿ ರೂಪಾ ಎಲ್ ಭಟ್ ರವರ ನೇಮಕಾತಿಯನ್ನು ಅನುಮೋದಿಸಿದ್ದ ದಿನಾಂಕ ೧೦-೭-೧೯೯೮ರ ಆದಳಿಕೆಯನ್ನು ಒಂಟುಎಸ್/೨೯/೯೮ರ ಸದರಿ ಕಾಲೇಜಿನ ಇತಿಹಾಸ ಉಪನ್ಯಾಸಕರ ಹುದ್ದೆಯನ್ನು ಒಬ್ಬ ಮೂಲಕ ತುಂಬಲು ನಿರ್ದೇಶನ ನೀಡಿರುತ್ತಾರೆ.

೩. ಶ್ರೀಮತಿ ರೂಪಾ ಎಲ್ ಭಟ್ ಮತ್ತು ಮಣಿಪಾಲ ಪದವಿ ಪೂರ್ವ ಕಾಲೇಜಿನ ಆದಳಿಕೆ ಮಂಡಳಿಯವರು ನಿರ್ದೇಶಕರ ದಿನಾಂಕ ೨೧-೧೦-೧೯೯೮ರ ಆದಳಿಕೆಯನ್ನು ಆಕ್ಟೋಬರ್ ನಿರ್ದೇಶಕರು ಶಿಕ್ಷಣ ಕಾರ್ಯದ ೧೯೯೩ ನಿಯಮ ೧೩ರ ಅನ್ವಯ ಕಾರ್ಯದರ್ಶಿಗಳಿಗೆ ಪ್ರಾಪ್ತವಾಗಿತ್ತು ಮತ್ತು ಶಿಕ್ಷಣ ಇಲಾಖೆ ಇವರ ಪ್ರಾಧಿಕಾರಕ್ಕೆ ಮುಂದೆ ಅನುಕ್ರಮವಾಗಿ ಮೇಲ್ಪಟ್ಟ ಸಂಖ್ಯೆ ೨೨/೯೯ ಮತ್ತು ೩೦/೯೯ ಗಳನ್ನು ಸಲ್ಲಿಸಿಕೊಂಡಿದ್ದರು. ಮೇಲ್ಕಂಡ ಮೇಲ್ಪಟ್ಟಿ ಅರ್ಜಿಗಳಲ್ಲಿ ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿಗಳು ದಿನಾಂಕ ೧-೭-೨೦೦೨ ರಂದು ಒಂದೇ ಆದಳಿಕೆ ಮಾಡಿ ಸೇರ ನೇಮಕಾತಿಗಾಗಿತ್ತು ಮತ್ತು ಒಟ್ಟುಯಾದ ತುಂಬ ಬೇಕಾಗಿರುವ ಹುದ್ದೆಗಳನ್ನು ನಿಯಮಗಳ ಅನ್ವಯ ಗುರುತಿ ಪ್ರಕರಣವನ್ನು ಪುನಃ ಪರಿಶೀಲಿಸಿ ಸೂಕ್ತ ಆದಳಿಕೆಯನ್ನು ಹೊರಡಿಸಬೇಕೆಂದು ನಿರ್ದೇಶಕರು, ಪದವಿ ಪೂರ್ವ ಶಿಕ್ಷಣ ಇಲಾಖೆ ಇಲಾಖೆಗೆ ನಿರ್ದೇಶನ ನೀಡಿರುತ್ತಾರೆ.

೪. ದಿನಾಂಕ ೧-೭-೨೦೦೨ರ ಕಾರ್ಯದರ್ಶಿಗಳ ಆದಳಿಕೆಯಂತೆ, ನಿರ್ದೇಶಕರು, ಸುಬ್ಬರಹಳ್ಳಿ ಅರ್ಜಿದಾರರುಗಳನ್ನು ಕರೆಸಿ ಆಯ್ಕೆ ದಿನಾಂಕ ೩೦-೧೧-೨೦೦೨ ರಂದು ಜೊರೆಯಿಸಿ ಆದಳಿಕೆಯಲ್ಲಿ ಒಂದಿನ ದಿನಾಂಕ ೨೧-೧೦-೧೯೯೮ರ ಆದಳಿಕೆಯನ್ನು ಎತ್ತಿ ಒಟ್ಟು ಮಣಿಪಾಲ ಪದವಿ ಪೂರ್ವ ಕಾಲೇಜಿನಲ್ಲಿ ಇತಿಹಾಸ

ಉಪನ್ಯಾಸಕರ ಹುದ್ದೆಯನ್ನು ಪ್ರೌಢಶಾಲಾ ನಿರ್ವಾಹ ಸಹಶಿಕ್ಷಕರ ವೃಂದದಿಂದ ಒಬ್ಬ ಮೂಲಕ ತುಂಬ ಬೇಕೆಂಬ ನಿರ್ದೇಶನವನ್ನು ನೀಡಿರುತ್ತಾರೆ.

೩. ದಿನಾಂಕ ೩೦-೧೨-೨೦೦೨ರ ನಿರ್ದೇಶಕರ ಆದೇಶವನ್ನು ಆಕ್ಷೇಪಿಸಿ ಮೊಟಕಾಲು ಪದವಿ ಪೂರ್ವ ಕಾಲೇಜಿನ ಆಡಳಿತ ಮಂಡಳಿ ಮತ್ತು ಶ್ರೀಮತಿ ರೂಪಾ ಎಸ್ ಭಟ್ ರವರು ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಅನುಕ್ರಮವಾಗಿ ರಿಟ್ ಅರ್ಜಿ ಸಂಖ್ಯೆ ೧೧೩೪/೨೦೦೩ ಮತ್ತು ೪೨೯೫೫/೨೦೦೨ ಗಳನ್ನು ದಾಖಲಿಸಿದ್ದರು. ಮಾನ್ಯ ಉಚ್ಚ ನ್ಯಾಯಾಲಯ ಈ ಎರಡೂ ರಿಟ್ ಅರ್ಜಿಗಳನ್ನು ಸೇರಿಸಿ ದಿನಾಂಕ ೭-೭-೨೦೦೩ ರಂದು ನೀಡಿದ ಒಂದೇ ಆದೇಶದಲ್ಲಿ ಕರ್ನಾಟಕ ಶಿಕ್ಷಣ ಕಾಯಿದೆ ೧೯೯೩ರ ನಿಯಮ ೧೩೦ರ ಪ್ರಕಾರ ಪರ್ಯಾಯ ಪರಿಹಾರೋಪಾಯ ಇರುವುದನ್ನು ಗಮನಿಸಿ ರಿಟ್ ಅರ್ಜಿಗಳನ್ನು ಎರಡೇ ಮಾದರಿಯಾಗಿ.

೬. ಕರ್ನಾಟಕ ಶಿಕ್ಷಣ ಕಾಯಿದೆ ೧೯೯೩ರ ನಿಯಮ ೧೩೦ರ ಪ್ರಕಾರ ಶ್ರೀಮತಿ ರೂಪಾ ಎಸ್ ಭಟ್ ರವರು ಮತ್ತು ಮೊಟಕಾಲು ಪದವಿ ಪೂರ್ವ ಕಾಲೇಜಿನವರು ನಿರ್ದೇಶಕರ ಆದೇಶ ಸಂಖ್ಯೆ PUE-11/C2/CR/Case 16/98-99 ದಿನಾಂಕ ೩೦-೧೦-೨೦೦೨ರ ಆದೇಶವನ್ನು ರದ್ದುಗೊಳಿಸಬೇಕೆಂದು ಆಪರ ಕಾರ್ಯದರ್ಶಿಗಳು, ಪ್ರಾಥಮಿಕ ಮತ್ತು ಪ್ರೌಢ ಶಿಕ್ಷಣ ಇಲಾಖೆ ಇವರ ಪ್ರಾದಿಕಾರದ ಮುಂದೆ ಅನುಕ್ರಮವಾಗಿ ಅಪೀಲು ಸಂಖ್ಯೆ 73/2003 ಮತ್ತು ಅಪೀಲು ಸಂಖ್ಯೆ 78/2003 ಗಳನ್ನು ದಾಖಲಿಸುತ್ತಾರೆ. ಎರಡೂ ಮೇಲ್ಮನವಿಗಳನ್ನು ಸೇರಿಸಿ ಆಲಿಸಿದ ಆಪರ ಕಾರ್ಯದರ್ಶಿಗಳು ದಿನಾಂಕ ೮-೧೦-೨೦೦೪ರ ತೀರ್ಪಿನಲ್ಲಿ ಕಳಕಂಡಂತೆ ಆದೇಶಿಸಿರುತ್ತಾರೆ. ಆದರೆ ಉದ್ದತೆ ಹಾಗವು ಕಳಕಂಡಂತಿದೆ.

16. It is a well established principle of law that calculation of quota between direct recruits and promotees is not that simple arithmetic. The law relating to quotas holding the field as of now, is the one declared by the Hon'ble Supreme Court of India in Gonal Bhimappa Vs State of Karnataka. Detailed guidelines on implementation of the aforesaid judgement of the Hon'ble Supreme Court in Gonal Bhimappa's case have been issued by Government vide Official Memorandum No. ೩೩೫೧ ೪೩ ಸಬ ೪೭ dated 14.12.1987. As can be seen from para 17 below, the Cadre & Recruitment Rules applicable to Government Pre-University Colleges is applicable to aided Pre-University Colleges also. Therefore, the Law laid down by the Hon'ble Supreme Court of India regarding quota rule in the State Civil Services, is also equally applicable to aided Pre-University Colleges. The said guidelines shall mutatis-mutandis be binding on aided Pre-University Colleges in the same way as the judgement of the Hon'ble Supreme Court of India on quota rule is binding on such institutions.

17. During the course of arguments, the counsels were asked to establish that the cadre and recruitment rules framed by the Government in respect of Government PU Colleges is applicable to aided colleges also. They relied upon Government Order No.ED 173 SLB 80 dated 11.5.1982 which, inter alia, directs that "The posts of Lecturers in aided Junior Colleges shall be filled in the ratio of 50% by promotion and 50% by direct recruitment on par with Government Junior Colleges" (Emphasis supplied). The proviso to Section 87 of the Karnataka Education Act, 1983, which is reproduced below also fortifies their contention:-

"87. Qualification, conditions of service of employees:- The State Government may after previous publication make rules regulating

the recruitment and conditions of service (including rights as regards disciplinary matters) of the employees in recognized private educational institutions:

Provided that the minimum qualifications for recruitment, age of recruitment, and retirement and benefits of retirement for employees in educational institutions receiving maintenance grant from the State Government shall be the same as those applicable for the corresponding category of employees, if any, in State institutions unless otherwise prescribed".

18. The recruitment in question relating to one post of lecturer in History in Manipal PU College has been made during July-September 1997. The cadre and recruitment rules that was holding the field during that period was the Karnataka Education Department Services (Department of Public Instruction) (Recruitment) Rules, 1967, ('1967 rules' for short) as amended by the Karnataka Education Department Services (Department of Public Instruction) (Recruitment) (Amendment) Rules 1983 (Government Notification No.ED 423 DPI 81 dated 29.6.1983) Though the said rules prescribed 50:50 quota between direct recruitment and promotion. It did not specify how the quota had to be calculated viz., whether the quota had to be calculated for the cadre of Lecturers as a whole or whether the quota had to be calculated subject-wise. However, the successor rules viz., the Karnataka General Services (Pre-University Education Recruitment) Rules, 1996 (Government Notification No.DPAR 71 SRE 94 dated 27-5-1998 published in Karnataka Gazette dated 27.5.1998) ('1996 rules' for short) specifies as to how the quota has to be calculated. The note as Column 5 of the schedule to the said rules under Sl.No.8 pertaining to the category of posts of lecturers is reproduced below:-

"Note:- The number of posts to which recruitment is to be made, both by Direct Recruitment and by promotion, shall be reckoned subjectwise or language-wise as the case may be".

In absence of anything to the contrary in the 1967 rules, it has to be presumed that under the 1967 rules also the same method of classification of direct recruitment and promotional vacancies was to be followed.

19. The post of lecturer in history in question has been so far filled-in by the following methods:-

Sl.No.	Name	Method of recruitment	Date of appointment	Remarks
1	Sri.U.L.N.Kukillaya	Promotion	1972	Retired in 1979
2	Sri.Dennis D'Silva	Promotion	6-4-1978	Retired on 20.11.1982

63 19

3	Sri.M.Ramachandra Bhat	Promotion	24.11.1982	Retired or 30.10.94
4	Smt.Roop L.Bhat	Direct recruitment	11.9.1997	Impugned appointment

20. Going by the principles of determination of quota between direct recruitment and promotion referred to at paras 16-18 above, the classification of the post of lecturer in History in question shall be as follows. Prior to 11.5.1982 there were no rules regulating recruitment to the posts of lecturers in aided PU Colleges. By Government Order No.ED 173 SLB 80 dated 11.5.1982, it has been directed that the posts of Lecturers in aided Junior Colleges shall be filled in the ratio of 50% by promotion and 50% by direct recruitment on par with the Government Junior Colleges. Though para 3(iii) of the preamble to the said Government Order states that the Commissioner for Public Instructions had recommended to Government that 50:50 ratio be given retrospective effect from the starting of the junior college, the order portion of the said Government Order does not make any such specification. Therefore, it has to be deemed that the recruitment rules applicable to Government PU Colleges, has become applicable to aided PU Colleges with effect from 11.5.1982. Thus, the promotion of Sri.U.L.N.Kukkillaya was during "No rule" period and therefore cannot be taken into consideration for purposes of these computations. The computation as per the provisions of O.M.No. 14207/92 dated 14-12-1987 shall be as follows:-

Post: LECTURER IN HISTORY

Sl. No.	Vacancy No.	Date on which the vacancy arose	Cause of the vacancy	Quota to which the vacancy belongs to as per O.M.dated 14.12.1987	Quota for which the vacancy was actually utilised
1	1	20-11-82	Retirement of Sri.Dennis D'Silva	Direct Recruitment	Promotion
2	2	30-10-94	Retirement of Sri.Ramachandra Bhat	Promotion	Utilised for the impugned direct recruitment of Smt.Roop L.Bhat

In the 1967 and the 1996 cadre and recruitment rules while referring to the two methods of recruitment, the rules first refers to direct recruitment and then to promotion. Therefore, after the quota rule came into force, the first vacancy has to go to direct recruitment, the second vacancy to promotion and so on. Thus, as can be seen from the above table the direct

64

recruitment vacancy that arose on 20.11.1982 was actually utilized for promotion of Sri.M.Ramachandra Bhat. That direct recruitment vacancy gets carried forward and set-off against the promotion vacancy that arose on 30.10.1994 due to the retirement of Sri.M.Ramachandra Bhat. It is against the said vacancy caused by the retirement of Sri.Ramachandra Bhat, that Smt.Roopaa L.Bhat has been appointed as a Direct recruit Lecturer in History. Thus, Smt.Roopaa L.Bhat's direct recruitment has been made against a direct recruitment vacancy and there is no violation of quota rules in her appointment.

21. Thus, the calculation of quota between Direct recruitment and promotion in the category of Lecturer in History of PU College, Manipal made by the Director in the Impugned order, dated 30.10.2002 is misconceived and unlawful and is therefore hereby set aside.
22. But the question is whether Smt.Roopaa L.Bhat's appointment is in accordance with the policy of reservations in favour of scheduled castes etc. or not? No authentic information is available in this regard in the records produced before this authority. No body has advanced any argument in this regard. For purposes of reservations in favour of the Scheduled Castes, Scheduled tribes and other backward classes in aided Pre-University Colleges, all the posts of lecturers in a college, irrespective of the subjects, is taken as one unit. Otherwise, majority of aided Pre-University Colleges have a single post of lecturer in each subject and since single posts are exempt from the policy of reservations, all the posts of lecturers in majority of aided Pre-University colleges would go out of the purview of reservations. Direct recruitment and promotion have different reservation rosters. Direct recruitment is subject to both vertical and horizontal reservation. Therefore, the Director of Pre-University Education shall examine the issue and pass appropriate orders in this matter, within a period of three months from the date of this order. Unless there is already a vacancy register in the form prescribed by Official Memorandum No.DPAR 28 SRR 85 dated 27.1.1986, a vacancy register will have to be got prepared now in that form, in respect of the posts of lecturers since the inception of the college. As seen from the advertisement issued by the management in "Udayavani" dated 27.1997 calling for applications for filling-up of the post of lecturer in History in question, the post has been classified as belonging to "General Merit". If the Director finds that the post is a "General Merit" post, then Smt.Roopaa L.Bhat shall continue in the post; otherwise the authorities concerned shall take necessary action to terminate her services. If the Director finds that the post is not a general merit post, grant-in-aid in respect of that post shall cease from the date of the order of the Director.
23. The contentions regarding the ineligibility of Sr.Umamaheshwara Hegde for promotion to the cadre of lecturer in History are baseless

68
and untenable. The very same contentions had been taken before the Director. Those contentions have been effectively met by the Director in the penultimate para of the Impugned order dated 30.10.2002. I agree with those findings regarding the eligibility of Sri.Umamaheshwara Hegde for promotion as Lecturer in History; and hold that Sri.Umamaheshwara Hegde is eligible for promotion to the cadre of Lecturer in History as per the recruitment rules. However, this finding should not be mistaken as any direction by this authority to promote Sri.Umamaheshwara Hegde.

24. These appeals are disposed of in terms of paras 20, 21, 22 and 23 above. The Director of Pre-University Education is directed to ensure that each aided Pre-University College maintains cadre-wise vacancy registers in the forms prescribed by Official Memorandum No.DPAR 28 SRR 85 dated 27.1.1986, so as to avoid such litigations.

2. ಮೇಲ್ಕನು ಅರ್ಜಿ ಸಂಖ್ಯೆ 73/2003(ED 110 SOH 03) C/W ಮತ್ತು ಮೇಲ್ಕನು ಅರ್ಜಿ ಸಂಖ್ಯೆ 78/2003 (ED 171 TPU 03) ರ ವಿಷಯಕೆ ಆ-ನಂ-೨೦೦೪ರ ಆದೇಶವನ್ನು ಆಕ್ಷೇಪಿಸಿ ಶ್ರೀ. ಉಮಾ ಮಹೇಶ್ವರ ಎನ್. ಹೆಗ್ಡೆಯವರು ಮಾನ್ಯ ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ರಿಟ್ ಅರ್ಜಿ ಸಂಖ್ಯೆ 45979/2004 ಅನ್ನು ದಾಖಲಿಸಿದ್ದರು. ರಿಟ್ ಅರ್ಜಿಯಲ್ಲಿನ ಅರ್ಜಿದಾರರ ಕೋರಿಕೆಯು ಕೆಳಕಂಡಂತಿದೆ.

- i) Issue a writ in the nature of CERTIORARI or any other appropriate writ or order or direction quashing order bearing No.73/2003 (ED 10 SOH 03) C/W Appeal No.78/2003(ED 171 TPU 03) dated 8.10.2004 passed by the Additional Secretary-1 to Government.
- ii) Issue a writ in the nature of MANDAMUS or any other appropriate writ or order or direction directing respondents No.2 & 4 to promote petitioner to the post of lecturer in History in pursuance of advertisement issued by fourth respondent and also grant all consequential benefits and
- iii) grant such other further relief as may deem fit in the circumstances of the case.

ಅರ್ಜಿದಾರರ ರಿಟ್ ಅರ್ಜಿಯನ್ನು ಆರಿಸಿದ ಮಾನ್ಯ ಉಚ್ಚ ನ್ಯಾಯಾಲಯವು ದಿನಾಂಕ ೨೯-೬-೨೦೦೭ರ ತೀರ್ಪಿನಲ್ಲಿ ಕೆಳಕಂಡಂತೆ ಆದೇಶಿಸಿದೆ. ಅಜೇಶದ ಉದ್ದತೆ ಭಾಗವು ಕೆಳಕಂಡಂತಿದೆ.

The petitioner joined IV Respondent College as a Graduate Assistant during the year 1979. Subsequently, the petitioner obtained Post Graduate Degrees in M.A. Political Science, History and Kannada. It is the grievance of petitioner that the post of lecturer in a Pre-University College has to be filled up in the ratio of 50% by promotion and 50% by direct recruitment

2. That being so, III Respondent issued a Notification Annexure-D dated 2.7.1997 notifying 2 vacancies in the post of lecturers in Commerce and History. This notification was issued contrary to rules. Notwithstanding the same, III respondent was appointed as lecturer in the IV respondent College.

66

3. The petitioner questioned the appointment of III respondent before the Director of Pre-University Education Board by filing a Review Application. The Director of PUE Board by order dated 4.12.1998 allowed the Review Application and set aside the appointment of III respondent. As against this order, the III respondent filed an appeal before the Additional Secretary to Primary & Secondary Education Department. The IV respondent College had also filed an Appeal. Both the appeals were heard together and a common order was passed wherein the Additional Secretary to Primary & Secondary Education Department has given the following directions to the Director of PUE Board:

"As seen from the advertisement issued by the management in "Udayavani" dated 2.7.1997 calling for applications for filling up of the post of Lecturer in History in question, the post has been classified as belonging to "General Merit". If the Director finds that the post is a "General Merit" post, then Smt. Roopa L. Bhat shall continue in the post; otherwise the authorities concerned shall take necessary action to terminate her services. If the Director finds that the post is not a general merit post, grant-in-aid in respect of that post shall cease from the date of the order of the Director".

It is also held in the said order that the petitioner is eligible for promotion to the cadre of lecturer in History as per Recruitment Rules. However, the finding shall not be considered as a direction given by the Addl. Secretary to Government, Primary & Secondary Education Department to the authorities concerned.

4. After disposal of the above appeals, it appears, that the Director has not taken any action pursuant to the directions given in the aforesaid order. The promotion of the petitioner to the cadre of lecturer has also not been considered.

5. In the Objection Statement filed on behalf of the II respondent i.e. the Director of PUE Board, nothing is stated about the compliance of the direction issued by the Addl. Secretary to Primary and Secondary Education Department, in Appeal No.73/2003 (ED) 110 SOH 03) CAV Appeal No.78/2003 (ED 171 TPU 03). Further it is stated in the objection statement that one post of lecturer in History has fallen vacant and as per roster this post has to be filled up by promotion.

6. I have heard the learned Counsel for the parties.

7. As could be seen from the objection statement filed by II respondent, there is no compliance of the order passed by the Addl. Secretary to Primary and Secondary Education Department, in Appeal No.73/2003 (ED) 110 SOH 03) CAV Appeal No.78/2003 (ED 171 TPU 03) by the II respondent. The II respondent has not taken further steps to consider the case of the petitioner for

67
promotion to the post of lecturer in History. If the petitioner is found otherwise eligible. It is clear from the objection statement filed by the II respondent that the post of lecturer in History has fallen vacant and this post has to be filled up by promotion. Under the circumstances, respondents II and IV cannot have any difficulty in considering the case of petitioner for promotion to the post of Lecturer in History if the petitioner is found to be otherwise eligible and pass appropriate orders in terms of the directions issued by Addl. Secretary to Primary and Secondary Education Department, in Appeal No. 73/2003 (ED 110 SOH 03) C/W Appeal No. 78/2003 (ED 171 TPU 03) dated 8.10.2004. Therefore, I pass the following:

"The writ petition is allowed with the above observations. No costs."

೮. ಮಾನ್ಯ ಉಚ್ಚ ನ್ಯಾಯಾಲಯವು ರಿಟ್ ಅರ್ಜಿ ಸಂಖ್ಯೆ 45979/04ರ ದಿನಾಂಕ 29-6-2007ರ ಆದೇಶವನ್ನು ಆಕ್ಷೇಪಿಸಿ ಮನೆಪಾಲ ಪದವಿ ಪೂರ್ವ ಕಾಲೇಜು, ಮನೆಪಾಲ ಇವರು ಉಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಪುನರವಲೋಕನಾ ಅರ್ಜಿ ಸಂಖ್ಯೆ 302/2007 in W.P.No.45979/2004 ಅನ್ನು ದಾಖಲಿಸಿದ್ದರು. ಪುನರವಲೋಕನಾ ಅರ್ಜಿಯಲ್ಲಿನ ಅರ್ಜಿದಾರರ ಕೋರಿಕೆಯು ಕಳಕೊಂಡಿದೆ.

Wherefore it is most respectfully prayed that the Hon'ble Court be pleased to review the order dated 29.6.2007 passed by this Hon'ble Court in W.P.No.45979/2004 allow this Civil petition and Issue such directions as this Hon'ble Court deems fit in the interest of Justice and equity.

ಅರ್ಜಿದಾರರ ಪುನರವಲೋಕನಾ ಅರ್ಜಿಯನ್ನು (review petition) ಆಲಿಸಿದ ಮಾನ್ಯ ಉಚ್ಚ ನ್ಯಾಯಾಲಯವು ದಿನಾಂಕ 29-6-2007ರ ತೀರ್ಪಿನಲ್ಲಿ ಕಳಕೊಂಡಂತೆ ಆದೇಶಿಸಿದೆ. ಆದರ ಉದ್ಭವ ಭಾಗವು ಈ ಕೆಳಕಂಡಂತಿದೆ:

Petitioner has sought for review of the order passed by this court on 29.6.2007 in W.P.No.45979/2004 Inter alia contending, in the matter of promotion of respondent No.1, directions given by Additional Secretary to Primary and Secondary Education Board in Appeal No.73/2003 (ED) 110 SOH 03) C/W Appeal No.78/2003 (ED) 171 TPU 02) dated 8.10.2004 are not being followed by the Board.

2. I have heard learned Counsel for petitioner and learned Counsel for respondents.

3. The learned Counsel for petitioner would submit, this court has held, the direction given in the aforesaid appeals should be complied by Primary and Secondary Education Board. Now, the case of promotion of respondent No.1 is being considering without following the directions. Therefore the order of this Court needs a review.

4. I cannot accept the submission made by learned Counsel for petitioner for following reasons:

This Court has held, the directions issued in Appeal No.73/2003 (ED) 110 SOH 03) c/w. Appeal No.78/2003(ED) 171 TPU 03) dated 8.10.2004 have not been complied and they are bound to be complied.

This Court has also held, the case of respondent No.1 has to be considered in terms of eligibility of respondent No.1 and also after following the directions issued in No.73/2003(ED) 171 TPU 03) dated 8.10.2004. The aspects are explicitly made clear in paragraph No.7 of the final order dated 29.6.2007. In view of this, I am of the opinion, further clarification is not needed.

Accordingly, review petition is dismissed.

ಮೇಲ್ಕಂಡ ನ್ಯಾಯಾಲಯಗಳ ನೀಡಿರುವ ತೀರ್ಪುಗಳ ಹಿನ್ನೆಲೆಯಲ್ಲಿ ಸದರಿ ಪ್ರಕರಣವನ್ನು ಈ ಕೆಳಕಂಡಂತೆ ಪುನಃ ಪರಿಶೀಲಿಸಿ ಈ ಕೆಳಕಂಡಂತೆ ಆದೇಶಿಸಲಾಗಿದೆ.

ಆದೇಶ ಸಂಖ್ಯೆ ಪಪ್ಪನಿಇ/ಎಸ್‌ಯುಎಚ್‌ಮೊಕದಮ್ಮೆ ೧೭/೯೮೯೯ ದಿನಾಂಕ ೧೯.೦೯.೨೦೦೮.

೧. ನ್ಯಾಯಾಲಯಗಳು ಮೇಲೆ ಉಲ್ಲೇಖಿಸಿರುವಂತೆ ಸರ್ಕಾರದ ಆದೇಶ ಸಂಖ್ಯೆ ಇಡಿ ೧೭೩ ಎಸ್‌ಎಲ್‌ಬಿ ಲರಿ ದಿನಾಂಕ ೧೧-೦೫-೧೯೮೨ ಹಾಗೂ ಪದವಿ ಪೂರ್ವ ಶಿಕ್ಷಣ ಇಲಾಖೆಯ ವೃಂದ ಮತ್ತು ನೇಮಕಾತಿ ನಿಯಮಗಳ ಅನುಸಾರ, ಪದವಿ ಪೂರ್ವ ಕಾಲೇಜುಗಳಲ್ಲಿನ ಉಪನ್ಯಾಸಕರ ಹುದ್ದೆಗಳನ್ನು ಕೇರಡ ೫೦ ರಷ್ಟು ಹುದ್ದೆಗಳನ್ನು ನೇರ ನೇಮಕಾತಿಯಿಂದ ಮತ್ತು ಕೇರಡ ೫೦ ರಷ್ಟು ಹುದ್ದೆಗಳನ್ನು ಪ್ರೌಢಶಾಲಾ ಸೂಚಕರ ವೃಂದದಿಂದ ಬಡ್ತಿ ಮೂಲಕ ತುಂಬಬೇಕಾಗುತ್ತದೆ.
೨. ಬಹಳಷ್ಟು ಮಾಸಗಿ ಅನುದಾನಿತ ಪದವಿ ಪೂರ್ವ ಕಾಲೇಜುಗಳಲ್ಲಿ ಒಂದೊಂದು ವಿಷಯದಲ್ಲಿ ಒಂದೊಂದೇ ಉಪನ್ಯಾಸಕರ ಹುದ್ದೆಯಿರುವುದರಿಂದ, ಒಂದೊಂದು ವಿಷಯದ ಹುದ್ದೆಯನ್ನು ಪ್ರತ್ಯೇಕ ವೃಂದವೆಂದು / ಯುನಿಟ್ ಎಂದು ಪರಿಗಣಿಸಿದರೆ ಬಹಳಷ್ಟು ಪದವಿ ಪೂರ್ವ ಕಾಲೇಜುಗಳಲ್ಲಿ ಏಕ (Single post) ಹುದ್ದೆಗಳು ಇರುವುದರಿಂದ ಇವು ರೋಸ್ಟರ್ ನಿಯಮಗಳ ವ್ಯಾಪ್ತಿಯಿಂದ ಹೊರಗುಳಿಯುತ್ತವೆ. (go Out of perview of reservations) ಇದರಿಂದಾಗಿ ಖಾಸಗಿ ಅನುದಾನಿತ ಪದವಿ ಪೂರ್ವ ಕಾಲೇಜುಗಳಲ್ಲಿ ಪರಿಶಿಷ್ಟ ಜಾತಿ ಮತ್ತು ಪರಿಶಿಷ್ಟ ಪಂಗಡದ ಅಭ್ಯರ್ಥಿಗಳಿಗೆ ಹಾಗೂ ಇತರ ಒಬಿಡಿ ಪ್ರವರ್ಗದವರಿಗೆ ಸಂವಿಧಾನಾತ್ಮಕವಾಗಿ ಒದಗಬೇಕಾದ ಶೇ ೫೦ ರಷ್ಟು ಮೀಸಲಾತಿ ಸಾಲಭ್ಯ ದೊರೆಯುವುದಿಲ್ಲ. (It amounts to inadequate representation of Scheduled Caste and Scheduled Tribe & other OBC candidates in Private aided PU Colleges).
೩. ಒಂದೊಂದು ವಿಷಯ/ಭಾಷೆಯ ಪ್ರತ್ಯೇಕವಾದ ವೃಂದವೆಂದು ಪರಿಗಣಿಸಿದೆ. ಎಲ್ಲಾ ಭಾಷೆ/ವಿಷಯಗಳಿಗೆ ಸ್ವಾತಂತ್ರ್ಯ ಪದವಿಯನ್ನು ಪಡೆದಿರುವ ಸಹ ಶಿಕ್ಷಕರ ಪ್ರೌಢಶಾಲಾ ವಿಭಾಗದಲ್ಲಿ ದೊರೆಯುವುದಿಲ್ಲ. ಆದ್ದರಿಂದ ಶೇ ೫೦ ರಷ್ಟು ಹುದ್ದೆಗಳನ್ನು ಬಡ್ತಿ ಮೂಲಕ ತುಂಬಲು ಸಾಧ್ಯವಾಗುವುದಿಲ್ಲ.

೪. ಸದರಿ ಕಾಲೇಜಿನ ಆಡಳಿತ ಮಂಡಳಿಯವರು, ಅಧಿಕೃತ ಧ್ವಾಪನ ಸಂಖ್ಯೆ ಡಿಪಿಎಲ್‌ಆರ್ ೨೮ ಎಸ್‌ಆರ್‌ಆರ್‌ಆರ್ ೮೫ ದಿನಾಂಕ ೨೭-೧೧-೧೯೮೭ರ ಪ್ರಕಾರ ವೇಲೆನ್ಸಿ ರಿಜಿಸ್ಟರ್ ಇಟ್ಟಿರದ ಇರುವುದು ಮತ್ತು ಎಲ್ಲಾ ವಿಷಯಗಳ/ಭಾಷೆಗಳ ಉಪನ್ಯಾಸಕರ ಹುದ್ದೆಗಳನ್ನು ಒಂದೇ ವೃಂದವೆಂದು ಪರಿಗಣಿಸಿರುವುದು ಆಡಳಿತ ಮಂಡಳಿಯವರು ದಿನಾಂಕ ೨೭-೧೧-೧೯೮೭ರ ಉದಯವಾಗಿದೆ.

ದಿನಪತ್ರಿಕೆಯಲ್ಲಿ ಮಾರ್ಚ್ ೨೦೧೨ ರಲ್ಲಿ ಪ್ರಕಟವಾದ, ಪರಿಷತ್ ಜಾರಿಗೆ ಮತ್ತು ಇತಿಹಾಸ ವಿಷಯವನ್ನು
ಕಾಮನ್ಸ್ ಆನ್ಲೈನ್ ಮೀಸಲಿತಿಗೆ ಒಳಪಡಿಸಿರುವ ನಿಬಂಧನೆಗಳಿಂದ ಗೃಹಪಡುತ್ತದೆ.

೨. ಮಾರ್ಚ್ ೨೦೧೨ ರಲ್ಲಿ ಪ್ರಕಟವಾದ ಕಾರ್ಯದ ವಿವರಗಳನ್ನು ಮುಂದುವರಿಸಿರುವ ವಿಷಯದ ಒಂದು ಆವೇಶದ
ಪದವಿ ಪ್ರಕಟವಾದ ಕಾರ್ಯದ ವಿವರಗಳನ್ನು ಮುಂದುವರಿಸಿರುವ ವಿಷಯದ ಒಂದು ಆವೇಶದ
ಪದವಿ ಪ್ರಕಟವಾದ ಕಾರ್ಯದ ವಿವರಗಳನ್ನು ಮುಂದುವರಿಸಿರುವ ವಿಷಯದ ಒಂದು ಆವೇಶದ

ಕ್ರ. ಸಂ.	ಪದವಿ-ಪದವಿ ಪದವಿ	ವಿಷಯ	ಸೇವಾಕಾರ ವಿವರ	ಸೇವಾಕಾರ ವಿವರ	ಮೀಸಲಾತಿ	ಪದವಿ
೧	ಮುಖ್ಯಮಂತ್ರಿ ಮಹಾಶಯ	ಇತಿಹಾಸ	ಸಹ ಕೆಳಕರ	೧೯೭೨	--	೧೯೭೯
೨	ಮುಖ್ಯಮಂತ್ರಿ ಮಹಾಶಯ	ಇತಿಹಾಸ	ಸಹ ಕೆಳಕರ	೧೯೭೨	--	೧೯೭೯
೩	ಮುಖ್ಯಮಂತ್ರಿ ಮಹಾಶಯ	ಇತಿಹಾಸ	ಸಹ ಕೆಳಕರ	೧೯೭೨	--	೧೯೭೯
೪	ಮುಖ್ಯಮಂತ್ರಿ ಮಹಾಶಯ	ಇತಿಹಾಸ	ಸಹ ಕೆಳಕರ	೧೯೭೨	--	೧೯೭೯
೫	ಮುಖ್ಯಮಂತ್ರಿ ಮಹಾಶಯ	ಇತಿಹಾಸ	ಸಹ ಕೆಳಕರ	೧೯೭೨	--	೧೯೭೯
೬	ಮುಖ್ಯಮಂತ್ರಿ ಮಹಾಶಯ	ಇತಿಹಾಸ	ಸಹ ಕೆಳಕರ	೧೯೭೨	--	೧೯೭೯
೭	ಮುಖ್ಯಮಂತ್ರಿ ಮಹಾಶಯ	ಇತಿಹಾಸ	ಸಹ ಕೆಳಕರ	೧೯೭೨	--	೧೯೭೯
೮	ಮುಖ್ಯಮಂತ್ರಿ ಮಹಾಶಯ	ಇತಿಹಾಸ	ಸಹ ಕೆಳಕರ	೧೯೭೨	--	೧೯೭೯
೯	ಮುಖ್ಯಮಂತ್ರಿ ಮಹಾಶಯ	ಇತಿಹಾಸ	ಸಹ ಕೆಳಕರ	೧೯೭೨	--	೧೯೭೯
೧೦	ಮುಖ್ಯಮಂತ್ರಿ ಮಹಾಶಯ	ಇತಿಹಾಸ	ಸಹ ಕೆಳಕರ	೧೯೭೨	--	೧೯೭೯
೧೧	ಮುಖ್ಯಮಂತ್ರಿ ಮಹಾಶಯ	ಇತಿಹಾಸ	ಸಹ ಕೆಳಕರ	೧೯೭೨	--	೧೯೭೯
೧೨	ಮುಖ್ಯಮಂತ್ರಿ ಮಹಾಶಯ	ಇತಿಹಾಸ	ಸಹ ಕೆಳಕರ	೧೯೭೨	--	೧೯೭೯
೧೩	ಮುಖ್ಯಮಂತ್ರಿ ಮಹಾಶಯ	ಇತಿಹಾಸ	ಸಹ ಕೆಳಕರ	೧೯೭೨	--	೧೯೭೯
೧೪	ಮುಖ್ಯಮಂತ್ರಿ ಮಹಾಶಯ	ಇತಿಹಾಸ	ಸಹ ಕೆಳಕರ	೧೯೭೨	--	೧೯೭೯
೧೫	ಮುಖ್ಯಮಂತ್ರಿ ಮಹಾಶಯ	ಇತಿಹಾಸ	ಸಹ ಕೆಳಕರ	೧೯೭೨	--	೧೯೭೯

ಮೊಲ್ಕರ ಪಟ್ಟಿಯಿಂದ ಪ್ರಾಂಶುಪಾಲರ ಹುದ್ದೆಗಳನ್ನು ಹೊರತುಪಡಿಸಿ, ಉಳಿದ ೧೧ ಹುದ್ದೆಗಳನ್ನು ನೇರ ನೇಮಕಾತಿಯಿಂದ ಮತ್ತು ಎರಡು ಹುದ್ದೆಗಳನ್ನು ಮಾತ್ರ ಪ್ರೌಢಶಾಲಾ ಸಹ ಶಿಕ್ಷಕರ ಪಂದದಿಂದ ಬಡ್ತಿ ಮೂಲಕ ತುಂಬಿಸುವುದು ಸ್ಪಷ್ಟಪಡಿಸುತ್ತೇನೆ.

೭. ಸಾರ್ವಜನಿಕ ಶಿಕ್ಷಣ ಅಯುಕ್ತರ ದಿನಾಂಕ ೨೨-೨-೧೯೭೭ರ ಅಧಿಸೂಚನೆ ಮತ್ತು ಸರ್ಕಾರ ಆದೇಶ ಸಂಖ್ಯೆ ಇಡಿ ೧೭೩, ಭಾಗ-ಎಲ್‌ಎಲ್‌ಎಂ ಲಂ ದಿನಾಂಕ ೧೧-೫-೧೯೭೭ರ ಪ್ರಕಾರ ಸಂಯುಕ್ತ ಪದವಿ ಪ್ರವರ್ತಕ ಶಾಲಾಪಾಲಕರಿಂದ ಉಪನ್ಯಾಸಕರ ಹುದ್ದೆಗಳನ್ನು ಶೇಕಡ ೫೦ ರಷ್ಟು ನೇರ ನೇಮಕಾತಿಯಿಂದ ಮತ್ತು ಶೇಕಡ ೫೦ ರಷ್ಟು ಹುದ್ದೆಗಳನ್ನು ಬಡ್ತಿಯಿಂದ ತುಂಬಿಸಲಾಗಿರುತ್ತದೆ. ಪೂರ್ಣಪ್ರಾಯ ಪದವಿ ಪ್ರವರ್ತಕರಾಗಬೇದು. ಮನೆಪಾಲ ಉಳಿ ಇತಿಹಾಸ ಮತ್ತು ಹಿಂದಿ ಉಪನ್ಯಾಸಕರುಗಳ ಹುದ್ದೆಗಳನ್ನು ಹೊರತುಪಡಿಸಿ ಉಳಿದ ೧೨ ಹುದ್ದೆಗಳನ್ನು ನೇರ ನೇಮಕಾತಿಯಿಂದ ತುಂಬಿಸಲಾಗಿದೆ. ೨೭.೦೪ ಹುದ್ದೆಗಳನ್ನು ಪ್ರೌಢಶಾಲಾ ಹಠ ಶಿಕ್ಷಣ ವೃಂದದಿಂದ ಬಡ್ತಿ ಮೂಲಕ ತುಂಬಿಸಲಾಗಿದೆ. ದಿನಾಂಕ ೧೯-೪-೧೯೭೭ ರಂದು ವ್ಯಾಜ್ಯಶಾಸ್ತ್ರ ಹುದ್ದೆಯು ಖಾಲಿಯಾಗಿರುತ್ತದೆ. ಪ್ರೌಢಶಾಲಾ ವಿಭಾಗದಲ್ಲಿ ವ್ಯಾಜ್ಯಶಾಸ್ತ್ರ ವಿಷಯದಲ್ಲಿ ಸ್ನಾತಕೋತ್ತರ ಪದವಿಯನ್ನು ಪಡೆದವರ ಸಹ ಶಿಕ್ಷಕರು ಯಾರು ಇಲ್ಲದಿದ್ದರೆ ಪ್ರಯುಕ್ತ ವಾಗ್ವಿಜ್ಞಾನ ಉಪನ್ಯಾಸಕರ ಹುದ್ದೆಗೆ ಪರಿಶಿಷ್ಟ ಜಾತಿಗೆ ಸೇರಿದ ಶ್ರೀ ಶಿವಕುಮಾರ್ ರವರನ್ನು ನೇರ ನೇಮಕಾತಿ ಮೂಲಕ ತುಂಬಿಸಬೇಕಿರುವುದು ನಿರ್ದಿಷ್ಟಪಡಿಸುವ ಸರಿಯಾಗಿದೆ.

೮. ದಿನಾಂಕ ೧೧-೧೧-೧೯೭೪ ರಂದು ಇತಿಹಾಸ ಉಪನ್ಯಾಸಕರ ಹುದ್ದೆಯು ಖಾಲಿಯಾಗಿದೆ. ಪ್ರೌಢಶಾಲಾ ವಿಭಾಗದಲ್ಲಿ ಸಹ ಶಿಕ್ಷಕರಾಗಿರುವ ಶ್ರೀ ಉಮಾ ಮಹೇಶ್ವರ ಹೆಗ್ಗಡೆಯವರು ಇತಿಹಾಸ ವಿಷಯದಲ್ಲಿ ಸ್ನಾತಕೋತ್ತರ ಪದವಿಯನ್ನು ಪಡೆದ ಉಪನ್ಯಾಸಕರ ಹುದ್ದೆಯ ಬಡ್ತಿಗೆ ಎಲ್ಲಾ ಉತ್ತಮ ಅರ್ಹತೆಗಳನ್ನು ಹೊಂದಿದ್ದು ಬಡ್ತಿಗಾಗಿ ಪುನರಾವೇಶಕ್ಕೆ ಸಲ್ಲಿಸಿದ್ದರೂ ಅವರ ಪುನರಾವೇಶಕ್ಕೆ ರದ್ದಾಗಿಸಿ ಶ್ರೀಮತಿ ರೂಪಾ ಎಲ್ ಬೆಕ್ ರವರನ್ನು ದಿನಾಂಕ ೧೧-೬-೧೯೭೭ ರಂದು ನೇರ ನೇಮಕಾತಿ ಮಾಡಿಕೊಂಡಿರುವುದು ನಿರ್ದಿಷ್ಟಪಡಿಸಲಾಗಿದೆ. ಆದ್ದರಿಂದ ಈ ಆದೇಶ ತರುವುದ ರೂಪದ ಶ್ರೀಮತಿ ರೂಪಾ ಎಲ್ ಬೆಕ್ ರವರನ್ನು ಕರ್ತವ್ಯದಿಂದ ವಜಾ ಮಾಡಿ ಇತಿಹಾಸ ಉಪನ್ಯಾಸಕರ ಹುದ್ದೆಯ ಬಡ್ತಿಗೆ ಎಲ್ಲಾ ಉತ್ತಮ ಅರ್ಹತೆಗಳನ್ನು ಹೊಂದಿರುವ ಶ್ರೀ ಉಮಾ ಮಹೇಶ್ವರ ಹೆಗ್ಗಡೆ ಅವರಿಗೆ ಇತಿಹಾಸ ಉಪನ್ಯಾಸಕರ ಹುದ್ದೆಗೆ ಬಡ್ತಿ ನೀಡಿ ಅನುಮೋದನೆಯಾಗಿ ಪ್ರಸ್ತಾಪಿಸುವುದು ಈ ಕಡೆಲಿಗ ಸಲ್ಲಿಸಬೇಕು ಆದೇಶಿಸಲಾಗಿದೆ.

[Signature]
ಭಯಚಕ್ರ

ಪ್ರೌಢ ಶಾಲಾ ಶಿಕ್ಷಣ ಇಲಾಖೆ

- ಪ್ರತಿಗಳು:
- ೧) ಸಂಪುಲಕರು, ಮನೆಪಾಲ ಪದವಿ ಪ್ರವರ್ತಕರಾಗಬೇದು, ಮನೆಪಾಲ, ಉತ್ತಮ ಬಡ್ತಿ.
 - ೨) ಉಪನ್ಯಾಸಕರರು, ಪೂರ್ಣ ಪ್ರಾಯ, ಉತ್ತಮ ಬಡ್ತಿ.
 - ೩) ಪ್ರಾಂಶುಪಾಲರು, ಮನೆಪಾಲ ಪೂರ್ಣ ಪ್ರಾಯ, ಮನೆಪಾಲ, ಉತ್ತಮ ಬಡ್ತಿ.

MRS Subalakshi
correspondent
M.R.C. College, Mangalore.

This is the Annexure... stated in the
Affidavit of... *[Signature]* ...

K. Advocate & Notary, Bengaluru

[Signature]
T.C

ANNEXURE J

PROCEEDINGS OF THE GOVERNMENT OF KARNATAKA
BEFORE SECRETARY TO GOVERNMENT OF KARNATAKA
(PRIMARY AND SECONDARY EDUCATION)
DEPARTMENT OF EDUCATION, BANGALORE.

APPEAL NO. 73/2008 (ED 233 SOH 2008) Dated 1st January 2013

Between

Smt. Roopa L. Bhat,
W/O Pradeep G. Bhat,
Lecturer in History,
Manipal Pre-University College,
Udupi Taluk & District.

... APPELLANT

(By SRI PREMAKUMAR P,
ADVOCATE for N.B. Bhat)

AND

1. COMMISSIONER
PRE UNIVERSITY EDUCATION,
18TH CROSS, MALLESWARAM,
BANGALORE-560 012.

2. CORRESPONDENT,
Manipal Pre-University College,
Manipal-576 104,
Udupi Taluk and District.

3. Sri. Umamaheshwara Hegde,
S/O Sri. Nagappa Hegde,
Graduate Assistant,
Manipal Pre-University College,
Manipal-576 104,
Udupi Taluk and District

... Respondents

Respondent No. 2 by Sri A. Madhusudhana Rao

Respondent No. 3 by Sri. Harikrishna S. Hota

72

The appellant filed appeal No.73/2008 under section 130 of the Karnataka Education Act.1983:

Praying to set aside the order dated 19/09/2008 passed by commissioner of pre-University (R-1) and to allow this appeal with costs.

BRIEF FACTS OF THE CASE

1. In the above, appeal the appellant challenging the order passed by the R-1 by its order dated 19-09-2008(Annexure-K) and further sort for the direction from the official respondents No.1 & 2, be directed to continue the appellant in service as Lecturer in History R-2's college. The advocate for the appellant submit that the appellant has obtained B.A. degree with History from Mangalore University, M.A.in History from Karnataka University Dharwad, and B.Ed. from Mangalore University. In the month of October 1994 , Sri.Ramachandra Bhat was retired at the age of superannuation. R-1's approval for filling up the vacancy of lecturer in History by direct recruitment was sought by R-2 and R-1 by a letter DL20-05-1997 conveyed his approval to R-2 for

73.

filling the vacancy of Lecturer in History by direct recruitment from GM Category. R-2 published an advertisement on 02-07-1997 inviting applications, inter alia against the vacancy of Lecturer in History.

The appellant sent her application, applicants were interviewed on 11-08-1997; the appellant was selected for the post of Lecturer in History; and she reported for duty on 11-09-1997 as regular Lecturer in History. Director, Department of PU education by order dated 10-07-1998 approved her appointment.

2. The advocate for the appellant further submits that the respondent no -3 challenging the appellant selection of Lecturer in history before the director.

3. Thereafter the appellant challenging the Director's order before this Hon'ble authority in appeal number 73/2003.

4. The Management, also prepared appeal no 78/2003 challenging the director's order dt.30-10-2002. The two appeals were heard and disposed of together by this Hon'ble authority by common order dt.08-10-

74

2004. It may kindly be seen that this Hon'ble authority at the end of para 20 of its order dated 08-10-2004 as categorically held that "Thus, Smt. Roopa L. Bhat's direct recruitment has been made against direct recruitment vacancy and there is no violation of quota rules in her appointment". Further the Hon'ble authority finally held that, the appellant will be entitled to continue in the post of lecturer in history in the General merit post. In the same order the Hon'ble authority quoted at the end of para 23, "However, this finding should not be mistaken as any direction by this authority to promote Umamaheshwara Hegde."

5. Further the advocate for the appellant submits that R-3 filed W.P. NO. 45979/2004 before the Hon'ble High court of Karnataka, challenging this Hon'ble authority's order dt. 08-10-2004.

6. The Hon'ble high court by order dated 29-06-2007 disposed the writ petition with the observation made therein. It has to be noted that "the hon'ble high

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court has not set aside or otherwise interfered this Hon'ble authorities order dated 08-10-2004. The High court has noted that the objection statement filed by the Director, in his statement, it is stated that one post of lecture in history has fallen vacant and the said post had to be filled by promotion. In view of the said statement of the Director the Hon'ble high court observed that the respondents cannot have any difficulty in considering the case of R-3 for promotion to the post of Lecturer in History.

7. The advocate for the appellant strongly submit that the commissioner . PU- education (R-1) has misinterpreted the order of the Hon'ble highcourt dated 29-06-2007. Finally without proper examining the hon'ble high court order, simply and straight away pass the order of the termination of the appellant and to promote Umamaheshwara Hegde. Therefore the advocate for the appellant pray for this Hon'ble authority's to :
8. quash R-1's order dt.19-09-2008 (Annexure-K).

76

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9. direct the respondents, no 1 and 2, to continue the appellant in service as lecturer in history in R-2's college and grant such other reliefs.

10. The advocate for the respondent No.3 Shri. Harikrishna S.holla has submitted that R-3 was appointed as graduate assistant in R-2's college and he passed in M.A.kannada, M.A. political science and M.A. History. Since this respondent is duly eligible in post of lecturer in History. Further the R-3 submits that the Hon'ble high court has clearly stated in its order dt.29-06-2007 to consider the case of the petitioner for the promotion for the post of lecturer in history though the respondent was eligible for promotion to the post of lecturer in history, he was denied of the same in spite of giving representations to the R-2's college on 04-04-1994 and 15-01-1996.

11. The advocate for the R-3 submitted that the order passed by the director dt.09-09-2008, the R-2 (college management) is avoiding to promote this respondent to the post of lecturer in history. This

77

respondent is already 56 years and he is having left another 4 years of service the respondent management with sole intention of allowing the appellant to continue the post.

12. Under these circumstances the R-3 pray that this Hon'ble authority please to dismiss the appeal.

13. The advocate for the R-2 submits that the order passed by this Hon'ble authority dt.08-10-2004 in appeal No.73/2003 and 78/2003, the enquiry that had to be conducted by R-1 was to decide as R-2 whether the post of lecturer in history is general merit post or not. It was also decide that the event of R-1 holding that the post if general post, the appointment of the appellant should be continued. But R-1 has failed to consider this aspect of the direction given by this Hon'ble authority and the same as resulted in passing of impugned order. During the pendency of the appeal the R-3 was retired, subsequently he was passed away.

Wherefore, R-2 prayed this Hon'ble authority be pleased to allow the appeal filed by the appellant and set aside the order passed by R-1 order dt. 19-09-2008.

Heard the learned counsel for the appellant and Respondents. I carefully gone through records produced by the department, I am the opinion that, this Hon'ble Authority already held that, the Respondent No.2 follow the quota rules and not violate any quota rules. Smt. Roopa Bhat selection to the post of History in lecturer comes under General Merit category and further direction given to the Commissioner to exam whether that post comes under General Merit category or other category but the Commissioner not properly examine the direction given by the this Hon'ble Authority in Appeal No.73/2003. In the above fact and circumstances this Hon'ble Authority interfered the order passed by the Commissioner and set-aside the Commissioner order dated: 19-09-2008.

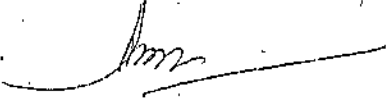
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ORDER

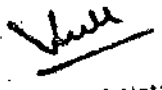
- i) In view of the above findings the appeal is allowed and the order passed by R-1 dt.19-09-2008, is hereby quashed (Annexure-k) and direct the R-1 and 2 to continue the appellant in service as lecturer in history in R-2's college.
- ii) To grant all other consequential benefits.

Pronounced in the open court on the 1st day of January 2013.


PRADEEP S. RAJANAL
Joint Secretary to Government
(Administration)
Applet Authority (Primary and
Secondary Education)
Education Department.

PRADEEP S. RAJANAL
Joint Secretary to Government (Administration)
(Primary & Secondary Education)
Education Department

This is the Annexure 3 stated in the
Affidavit of Pooja C. Bhad


K. Advocate & Notary, Bengaluru

T.T.O.

K
ANNEXURE K

80

16640/n

S. M. Banoli

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 30TH DAY OF MAY, 2017

BEFORE

THE HON'BLE MR. JUSTICE A.N. VENUGOPALA GOWDA

WRIT PETITION NO. 7999/2013 (S-RES)

BETWEEN:

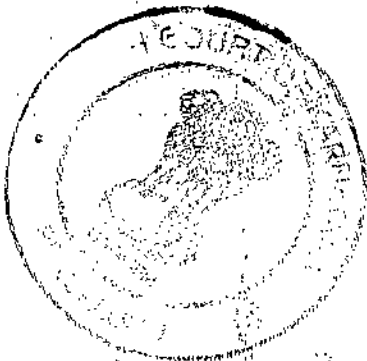
SMT. GOWRI
W/O LATE UMAMAHESHWAR HEGDE
AGED ABOUT 56 YEARS
R/AT 'SHUKA' SHANTHINAGAR
MANIPAL - 576 104
UDUPI TALUK AND DISTRICT.

...PETITIONER

(BY SRI K. PRASAD HEGDE, ADV.)

AND:

1. STATE OF KARNATAKA
REP. BY ITS PRINCIPAL SECRETARY TO GOVERNMENT
EDUCATION DEPARTMENT
(PRIMARY AND SECONDARY EDUCATION)
M.S. BUILDING, DR. AMBEDKAR VEEDHI
BANGALORE - 560 001.
2. THE COMMISSIONER
PRE-UNIVERSITY EDUCATION
18TH CROSS, MALLESHWARAM
BANGALORE - 560 003.
3. MANIPAL PRE-UNIVERSITY COLLEGE
MANIPAL - 576 119
UDUPI TALUK AND DISTRICT



This Certified copy contains..... 6..... Pages
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REP. BY ITS CORRESPONDENT

4. SMT. ROOPA L.BHAT
AGE: MAJOR
LECTURER IN HISTORY
MANIPAL PRE-UNIVERSITY COLLEGE
MANIPAL - 576 119
UDUPI TALUK AND DISTRICT.

...RESPONDENTS

(BY SRI M.A. SUBRAMANI, HCGP FOR R1 & R2
SRI A. MADHUSUDHANA RAO, ADV. FOR R3
SRI S.G. PANDIT, ADV. FOR R4)

THIS PETITION IS FILED UNDER ARTICLES 226 AND 227 OF THE CONSTITUTION OF INDIA, PRAYING TO QUASH THE ORDER DATED 01.01.2013 PASSED BY THE 1ST RESPONDENT VIDE ANNEXURE-A AND DIRECT THE RESPONDENT NOS.1 TO 3 TO RE-FIX THE PAY SCALE BY GIVING NOTIONAL PROMOTION TO THE HUSBAND OF THE PETITIONER PURSUANT TO ORDER VIDE ANNEXURE-F DATED 19.09.2008 WITH EFFECT FROM 11.06.1997 AND RELEASE ALL THE FINANCIAL BENEFIT.

THIS PETITION COMING ON FOR PRELIMINARY HEARING IN 'B' GROUP THIS DAY, THE COURT MADE THE FOLLOWING:

ORDER

An order appointing the 4th respondent as a Lecturer in History in the Manipal Pre-University College - 3rd respondent was assailed by Sri Uma Maheshwara Hegde, husband of the petitioner, before the Director of Pre-University Education. The case having been allowed on 04.12.1998, 4th respondent filed Appeal No.24/1999 before



the first respondent. By an order dated 01.07.2002, the appeal was allowed and the matter remanded to the Director of Pre-University Education for consideration afresh. On 30.10.2002, Director of Pre-University Education, set aside the appointment of 3rd respondent and directed the Management to fill up the post by promotion from the cadre of Assistant Teacher. W.P.No.1134/2003 and W.P.No.42955/2002 were filed assailing the said order. Both the petitions were disposed of with liberty to file appeal before the first respondent. Appeal having been filed before the first respondent, an order dated 08.10.2004 was passed and the case remanded. Said order was assailed in W.P.No.45979/2004 and by order dated 29.06.2007, the petition disposed of. A fresh order having been passed by the 2nd respondent on 29.09.2008, the same was assailed by the 4th respondent before the first respondent in Appeal No.73/2008. The appeal having been allowed and the impugned order set aside with a direction to the Commissioner of Pre-University Education and the correspondent of Manipal Pre-University College to



continue Smt. Roopa L. Bhat, W/o Pradeep Bhat i.e., the 3rd respondent herein in service as Lecturer in History in Manipal Pre-University College in Udupi Taluk, this writ petition was filed to quash the order, as at Annexure-A passed on 01.01.2013.

2. It is unnecessary to decide the case on merit, as the first respondent has committed illegality in allowing the appeal against a dead person. The arguments in the case having been heard by the first respondent on 12.07.2011 and case reserved for orders, a memo dated 09.09.2012 was filed reporting the death of Sri Uma Maheshwara Hegde on 29.07.2012 i.e., the 3rd respondent in the appeal. Despite filing of the said memo and producing proof with regard to publication appearing in the newspaper, regarding death, first respondent has passed the order dated 01.01.2013 vide Annexure-A.

3. It appears from the original record that the person who heard the arguments on 12.07.2011 has not passed the order as at Annexure-A, as the signatures



84

appearing in the order sheet and the order differ. Learned HCGP is unable to state with certainty, whether the person who heard the arguments is the one who has passed the order as at Annexure-A. Be that as it may.

4. As there is no dispute with regard to death of petitioner's husband on 29.07.2012, who was respondent No.3 in Appeal No.73/2008, the order at Annexure-A having been passed against a dead person is nullity. Hence, the same cannot be given any credence.

In the result, writ petition is allowed and the order at Annexure-A quashed. The petitioner shall be treated as LR. of deceased respondent No.3 in Appeal No.73/2008 and the appeal heard and decided afresh.

The petitioner and respondent Nos.3 and 4 shall appear before respondent No.1 on 03.07.2017 at 3.00 p.m. and receive orders. The case shall be decided with expedition and before 31.10.2017. Till the case is decided by respondent No.1, the respondent No.3 herein shall be



85

6

entitled to continue in service i.e., subject to the result of the aforesaid appeal.

No costs.

Sd/-
JUDGE



TRUE COPY

Indipound
Section Officer

Court of Karnataka
Bengaluru-560 001

3-6-17

- a) The date on which the application was made: 31.5.17
- b) The date on which charges and additional Charges if any, are called for: 31.5.17
- c) The date on which charges and additional Charges, if any are deposited/Paid: 31.5.17
- d) The date on which the copy is ready: 31.5.17
- e) The date of notifying that the copy is ready for delivery: 31.5.17
- f) The date on which the applicant is required to appear on or before: 31.5.17
- g) The date on which the copy is delivered to the Applicant: 31.5.17
- h) Executed by: [Signature]

This is the Annexure K stated in the Affidavit of Ram Lakshmi

[Signature]
K, Advocate & Notary, Bengaluru

T.C

ANNEXURE : L

86

**PROCEEDINGS OF THE GOVERNMENT OF KARNATAKA
BEFORE SECRETARY TO GOVERNMENT OF KARNATAKA
(PRIMARY AND SECONDARY EDUCATION)
DEPARTMENT OF EDUCATION, BENGALURU**

Appeal No.73/2008 (ED 233 SOH 2008) dated 08.03.2018
(ED 148 D&W 2015)

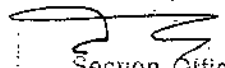
BETWEEN:

Smt.Roopu L. Bhat
W/o.Pradeep G. Bhat
Lecturer in History,
Manipal Pre-University Collage,
Udupi Taluk and District
(by Sri.Ravishankar.R.H)

: APPELLANT

AND:

1. Commissioner,
Pre – University Education,
18th Cross, Malleswaram,
Bengaluru-560012.
2. Correspondent
Manipal Pre-University Collage,
Manipal-576119,
Udupi Taluk and District,
3. Shri Umamaheshwara Hegde,
S/o.Shri Nagappa Hegde,
Graduate Assistant,
Manipal Pre –University College,
Manipal – 576 119,
Udupi Taluk and District,
Since dead represented by his Legal
Representative


Section Officer
Education Department (PUE),
Karnataka Government Secretariat
M. S. Building, Bangalore - 01

87

3(a). Smt. Gowri,
W/o. Late. Umamaheshwara Hegde,
Aged about 56 years,

Residing at "Shuka", Shanthinagar,
Manipal - 576 104,

Udupi Taluk and District

(Respondent No.2 by Sri. Chakravarthy)

(Respondent No.3(a) by Sri. K. Prasad Hegde)

: RESPONDENTS

The appellant filed appeal No.73/2008 under section 130 of the Karnataka Education Act 1983, praying to issue an appropriate order of direction to quash Respondent No.1's order No.PAPUSHIE/SO26/CASE-16/98-99, dated 19.09.2008 (Annexure-K), direct Respondent Nos.1 and 2 to continue the Appellant in service as Lecturer in History in Respondent No.2 College and grant such other reliefs.

BRIEF FACTS OF THE CASE

1. The appellant filed an appeal under section 130 of the Karnataka Education Act 1983, praying to issue an appropriate order of direction to quash Respondent No.1's order No.PAPUSHIE/SO26/CASE-16/98-99, dated 19.09.2008 (Annexure-K), direct Respondent Nos.1 and 2 to continue the Appellant in service as Lecturer in History in Respondent No.2 College and grant such other reliefs.
2. After hearing arguments on the both the sides, the appellate authority allowed the appeal on 01.01.2013 and the order passed by the Respondent No.1 dated 19.09.2008 was quashed, directing the Respondent No.1 and 2 to continue the appellant in service as lecturer in history in Respondent No.2's college and further granted all other consequential benefits.
3. Being aggrieved by the order dated 01.01.2013 passed in Appeal No.73/2008, the Legal Representative of the Respondent No.3 Smt. Gowri has preferred Writ Petition in WP No.7999/2013 (S-RES) before the Hon'ble High Court of Karnataka at Bengaluru and contended that the order passed by the appellate authority has committed illegality in allowing the appeal against a

Section Officer
Education Department (PUE)
Karnataka Government Secretariat
M.S. Building, Bangalore - 56

88

dead person. The arguments in the case having been heard by the appellate authority on 12.07.2011 and case was reserved for orders. A memo dated 09.09.2012 was filed reporting the death of Sri.Uma Maheshwara Hegde on 29.07.2012 by the Respondent No.3 in the appeal. Despite filing of the said memo and producing proof with regard to publication appearing in the newspaper regarding death, the appellate authority has passed the order on 01.01.2013.

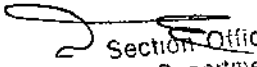
4. The Hon'ble High Court of Karnataka, Bengaluru allowed the Writ Petition WP No.7999/2013 (S-RES) on 30.05.2017 and order dated 01.01.2013 passed in Appeal No.73/2008 was quashed and further ordered that the petitioner shall be treated as LR of deceased Respondent No.3 in Appeal No.73/2008 and the appeal to be heard and decided afresh. The Hon'ble High Court further ordered that the petitioner and Respondent No.3 and 4 shall appear before the Appellate Authority on 03.07.2017 at 3.00 p.m. and receive orders. Till the case is decided by the Appellate Authority, the Respondent No.3 therein shall be entitled to continue in service i.e. subject to the result of the aforesaid appeal.

5. Based on the order of the Hon'ble High Court of Karnataka, Bengaluru, on 22.07.2017, the Appellant has presented appeal No.73/2008 before the appellate authority to decide afresh. On 21.01.2018 case was called out and advocate for appellate was present along with advocate for Respondent No.2 and 3(a). The Appellant filed her written arguments on 21.01.2018 and contended that the order dated 01.01.2013 passed by the appellate authority has to be set-aside on the ground that the LRs of the Respondent No.3 were not brought on record and further all other merits have been considered. The Respondent No.2 submitted written arguments saying that all rules have been duly followed. The deceased Respondent No.3 was lecturer in Kannada but was teaching History and same was not considered during promotion. However, as per Karnataka Education Department Service (Department of Public Instruction) (Recruitment) (Amendment) Rules 1983, the qualification prescribed for promotion to the post of lecture is either Second Class Master Degree with concerned subject as a major subject at the Master Degree level or pass Class Master Degree with not less than three

89

years teaching experience in High School/Higher Secondary School or College. However, in the Karnataka General Service (Pre-university Education Recruitment) Rules 1996 (Government Notification No.DPAR 71 SRE 94 dated 27.05.1998 published in Gazette on 27.05.1998) the qualification prescribed for promotion is (1) Must have passed Master Degree in the concerned subject which must be a subject taught by him in the High School level as specified in the table annexed to those rules. The advocate Respondent No.3 (a) contended the statement of objections filed earlier may be considered.

Heard learned counsel for the Appellant and Respondents and carefully gone through the records produced by the both the parties. No new issues have been raised and same contentions have been argued which were contended earlier. As per Government Notification dated 22.02.1967 published by the Commissioner for Public Instructions and Government Order bearing No.ED 173 SLB 80, dated 11.05.1982 states that posts of lecturers shall be filled in the ratio of 50% by promotion, and 50% by direct recruitment to the Government Junior Colleges. As far as the Respondent No.2 college is concerned, 10 posts have been filled-up through direct recruitment excluding the posts of History and Hindi Lecturer and remaining four teachers posts had to be filled up by way of promotion. As on 01.11.1994, History Lecturer post was vacant in the Respondent No.2 College. Shri Umamaheshwara Hegde was working as a co-teacher in secondary school division and also obtained Master Degree in History. Therefore Shri Umamaheshwara Hegde is eligible for History Lecturer posts in the Respondent No.2 College by way of promotion. Instead of appointing Shri Umamaheshwara Hegde as Lecturer to the History post, Smt.Roopa L Bhat was appointed in the Respondent No.2 college on 11.6.1997 by direct recruitment which is against the Government Notification dated 22.02.1967 and Government Order bearing No.ED 173 SLB 80, dated 11.05.1982. Therefore the Respondent No.1 has rightly passed order on 19.09.2008, thereby dismissing the appointment of Smt.Roopa L Bhat as lecturer and further ordered to submit proposal to promote Shri Umamaheshwara Hegde as lecturer to the History Post. Hence the following.


Section Officer
Education Department (PUE,
Karnataka Government Secretariat
M.S. Building, Bangalore - 01 4

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ORDER

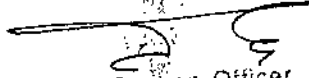
In view of the above, the appeal filed by the appellant under section 130 of the Karnataka Education Act 1983 is hereby dismissed and the order dated 19.09.2008 passed by the Respondent No.1 is confirmed.

Pronounced in the open court on the 8th day of March 2018.



(Dr. Shalini Rajneesh)

Principal Secretary to Government
Primary and Secondary Education Department



Section Officer
Education Department (PUE)
Karnataka Government Secretariat
M.S. Building, Bangalore - 01

This is the Annexure 1 stated in the
Affidavit of Rajendra Shetty



K, Advocate & Notary, Bangalore



91

IN THE COURT OF THE HIGH COURT OF KARNATAKA AT
BANGALOR
dt. No. _____ of 2018 (Edn)

Plaintiff/s, Petitioner/s
Appellant/s, Caveator/s, Complainant/s
Decree - Holder/s

Vs.

Defendant/s, Respondent/s
Accused, Opponent/s,
Judgement - Debtor/s

Roopa L Bhat

Govt State of Karnataka & Ors

I/We Roopa L Bhat

the Petitioner

Nos. _____ in the above matter hereby appoint and retain
Sri/Smt. Ravishankar R.H. Advocate, Bangalore

to appear act and plead for me/us in the above matter and to conduct/prosecute and defend the same in all interlocutory or miscellaneous proceedings connected with the same or with any decree or orders passed therein appeals and or other proceedings arising there from and also in proceedings for review of judgement and for leave to appeal to Supreme Court and to obtain return of any documents filed therein or receive any money which may be payable to me/us.

2. I/We hereby authorise him/her/them on my/our behalf to enter into a compromise in the above matter, to execute any decree/order therein to appeal from any decree/order/therein and to appeal to act to plead in such appeal in any preferred by any other party from any decree/other/therein.

I/We further agree that, if I/We fail to pay the fees agreed upon or to give due instructions at all stages he/she/they, is/are at liberty to retire from the case and recover all amounts due to him/her/them and retain all my/our monies till such dues are paid.

Executed by me/us this 3rd day of June 2018 at Bangalore

[Signature]
Signature/s
[Roopa L Bhat]

Executant/s is/are personally known to me/us and he/she/they has/have signed before me/us.

Satisfied as to the identity of executant/s Signature/s
(Where the executant/s are illiterate, blind or unacquainted with the language of vakalath)

Certified, that the contents were explained to the executant/s in my/our presence in Kannada language known to him/her/them who appear/s perfectly to understand the same and has/have signed in the presence.

Accepted

Name Ravishankar R.H. Roll No. Kal. 2230/2010

Name _____ Roll No. _____

Address B. S. H. S. 10

Address for service

Ravishankar R H
Advocate
'Gurukrupa', No. 44, 2nd Floor
Seshadripuram, Bangalore

ಕರ್ನಾಟಕ ಸರ್ಕಾರ
GOVERNMENT OF KARNATAKA

ಕ್ರಮಾಂಕ
NO.

1.The Secretary to Govt.,
S. Dept. of Education,
TO (Primary & Secondary)
M.S.Building,
Bengaluru-1.
2.The Commissioner
Pre-University Education,
18th Cross, Malleshwaram,
SIR, Bengaluru-12.

ಅಡ್ವೋಕೇಟ್ ಜನರಲ್‌ರವರ ಕಛೇರಿ
ಉಚ್ಚ ನ್ಯಾಯಾಲಯದ ಕಟ್ಟಡ
ಬೆಂಗಳೂರು-560 001

OFFICE OF THE ADVOCATE GENERAL
HIGH COURT BUILDING
BENGALURU-560 001

ದಿನಾಂಕ DATED.....

22.10.2020

Sub:-W.P.No.24930/2018- Roopa L. Bhat, Udupi
V/s The Secretary to Govt., Dept. of Education,
B'lore. & others - on the file of the High Court of
Karnataka.

In the above Writ Petition, the Petitioner had sought to call for records in Appeal No.73/2008 on the file of the Secretary to Government of Karnataka (Primary & Secondary Education), Dept. of Education, B'lore. (Respondent No.1) herein and has sought for other consequential reliefs.

The above matter was posted before the Hon'ble Court on 21.10.2020 in C.H.No.30. The Hon'ble Court has directed the undersigned to take notice on behalf of Respondents and further directed to file Statement of Objections.

Therefore, kindly direct the concerned officer who is well conversant with the facts of the case to assist the undersigned in preparing the Statement of Objections, so as to enable the undersigned to prepare and file the Statement of Objections. Failing which, the Hon'ble Court may pass adverse orders.

Treat the matter as MOST URGENT.

Yours faithfully,

(VENKATASATHYANARAYANA)
HIGH COURT GOVT. PLEADER

SK/*21102020/*1+2
Letter-sho.doc.

ಕರ್ನಾಟಕ ಸರ್ಕಾರ
GOVERNMENT OF KARNATAKA

ಕ್ರಮಾಂಕ
NO.

1.The Secretary to Govt.,
ಗೌ. Dept. of Education,
to, (Primary & Secondary)
M.S.Building,
Bengaluru-1.
2.The Commissioner
Pre-University Education,
ಮಾನ್ಯ ಸಿರ್, 18th Cross, Malleshwaram,
Bengaluru-12.

ಅಡ್ವೋಕೇಟ್ ಜನರಲ್‌ರವರ ಕಛೇರಿ
ಉಚ್ಚ ನ್ಯಾಯಾಲಯದ ಕಟ್ಟಡ
ಬೆಂಗಳೂರು-೫೬೦ ೦೦೧

OFFICE OF THE ADVOCATE GENERAL
HIGH COURT BUILDING
BENGALURU-560 001

ದಿನಾಂಕ DATED.....

22.10.2020

Sub:-W.P.No.24930/2018- Roopa L. Bhat, Udupi
V/s The Secretary to Govt., Dept. of Education,
B'lore. & others - on the file of the High Court of
Karnataka.

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for records in Appeal No.73/2008 on the file of the Secretary to
Government of Karnataka (Primary & Secondary Education),
Dept. of Education, B'lore. (Respondent No.1) herein and has
sought for other consequential reliefs.

The above matter was posted before the Hon'ble Court on
21.10.2020 in C.H.No.30. The Hon'ble Court has directed the
undersigned to take notice on behalf of Respondents and further
directed to file Statement of Objections.

Therefore, kindly direct the concerned officer who is well
conversant with the facts of the case to assist the undersigned in
preparing the Statement of Objections, so as to enable the
undersigned to prepare and file the Statement of Objections.
Failing which, the Hon'ble Court may pass adverse orders.

Treat the matter as MOST URGENT.

Yours faithfully,

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(VENKATASATHYANARAYANA)
HIGH COURT GOVT. PLEADER

ಕರ್ನಾಟಕ ಸರ್ಕಾರ
GOVERNMENT OF KARNATAKA

ಕ್ರಮಾಂಕ
NO.

1.The Secretary to Govt.,
ಗೆ, Dept. of Education,
to, (Primary & Secondary)
M.S.Building,
Bengaluru-1.
2.The Commissioner
Pre-University Education,
ಮಾನ್ಯ ಸಿರ್, 18th Cross, Malleshwaram,
Bengaluru-12.

ಅಡ್ವೋಕೇಟ್ ಜನರಲ್‌ರವರ ಕಛೇರಿ
ಉಚ್ಚ ನ್ಯಾಯಾಲಯದ ಕಟ್ಟಡ
ಬೆಂಗಳೂರು-560 001

OFFICE OF THE ADVOCATE GENERAL
HIGH COURT BUILDING
BENGALURU-560 001

ದಿನಾಂಕ DATED.....

22.10.2020

Sub:-W.P.No.24930/2018- Roopa L. Bhat, Udupi
V/s The Secretary to Govt., Dept. of Education,
B'lore. & others - on the file of the High Court of
Karnataka.

In the above Writ Petition, the Petitioner had sought to call for records in Appeal No.73/2008 on the file of the Secretary to Government of Karnataka (Primary & Secondary Education), Dept. of Education, B'lore. (Respondent No.1) herein and has sought for other consequential reliefs.

The above matter was posted before the Hon'ble Court on 21.10.2020 in C.H.No.30. The Hon'ble Court has directed the undersigned to take notice on behalf of Respondents and further directed to file Statement of Objections.

Therefore, kindly direct the concerned officer who is well conversant with the facts of the case to assist the undersigned in preparing the Statement of Objections, so as to enable the undersigned to prepare and file the Statement of Objections. Failing which, the Hon'ble Court may pass adverse orders.

Treat the matter as MOST URGENT.

Yours faithfully,

(VENKATASATHYANARAYANA)
HIGH COURT GOVT. PLEADER

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